

Motion

A

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXSUMMONS-----X
JOHN HILL,

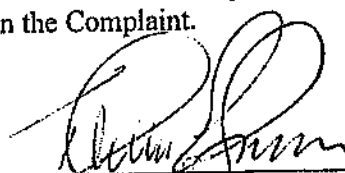
Plaintiff(s),

-against-

THE CITY OF NEW YORK,
POLICE OFFICER JESSICA FIGUEROA,
POLICE OFFICER ANTHONY DONATO, and
POLICE OFFICERS JOHN DOE #1-6, (IDENTITIES
PRESENTLY UNKNOWN), individually and in their
Official Capacity,Defendant(s).
-----X

To Above-Named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete, if this Summons is not personally delivered to you within the State of New York, and in case of your failure to Appear or Answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: White Plains, NY
March 17, 2013
Thomas E. GormanAttorney for Plaintiff
244 Westchester Ave., Suite 410
White Plains, NY 10060-2919
(914) 684-1155To: Corporation Counsel
100 Church St.
New York, NY 10007The NYC Police Dept.
One Police Plaza, Room 140
New York, NY 10038Jessica Figueroa
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457Anthony Donato
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457Police Officers John Doe #1-6
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOHN HILL,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER JESSICA FIGUEROA,
POLICE OFFICER ANTHONY DONATO, and
POLICE OFFICERS JOHN DOE #1-6, (IDENTITIES
PRESENTLY UNKNOWN), individually and in their
Official Capacity,

Defendant.
-----X

Index No.:

Date Filed:

COMPLAINT

Plaintiff, JOHN HILL, by his attorney, THOMAS E. GORMAN, ESQ., as and for
his Complaint against the Defendants, states and alleges, upon information and belief and
at all times material hereto, as follows:

PARTIES AND JURISDICTION

1. Plaintiff, JOHN HILL, was and is an individual residing at 753 Crotona
Park North, Bronx, NY 10457;
2. Upon information and belief, at all times material hereto, Defendant, THE
CITY OF NEW YORK, was and is a municipal corporation duly
incorporated under the laws of the State of new York;
3. At all times material hereto, upon information and belief, Defendant, THE
CITY OF NEW YORK, was and is a municipal corporation duly existing
by virtue of the laws of the State of New York with the power and
authority to carry out municipal functions including maintenance and
operation of a police department (NYPD), and at all times relevant hereto
employed the Defendants POLICE OFFICER JESSICA FIGUEROA,

POLICE OFFICER ANTHONY DONATO and POLICE OFFICERS JOHN DOE #1-6, as police officers;

4. Upon information and belief, at all times material hereto, Defendant, POLICE OFFICER JESSICA FIGUEROA, was and is a police officer employed in and by Defendant, THE CITY OF NEW YORK, and duly appointed and acting as an officer of the aforementioned police department. Defendant, POLICE OFFICER JESSICA FIGUEROA, is sued individually and in her capacity as a police officer in and with the NYPD;
5. Upon information and belief, at all times material hereto, Defendant, ANTHONY DONATO, was and is a police officer employed in and by Defendant, THE CITY OF NEW YORK, and duly appointed and acting as an officer of the aforementioned police department. Defendant, POLICE OFFICER ANTHONY DONATO, is sued individually and in his capacity as a police officer in and with the NYPD;
6. Upon information and belief, at all times material hereto, Defendants, POLICE OFFICERS JOHN DOE 1-6, inclusive, were and are police officers employed in and by Defendant, THE CITY OF NEW YORK, and duly appointed and acting as officers of the aforementioned police department but whose names are currently unknown to Plaintiff. Plaintiff will amend this Complaint to reflect the proper names of these Defendants once same become known. Defendants, POLICE OFFICERS JOHN DOE

#1-6 are sued individually and in their capacity as police officers in and with the NYPD;

7. On May 24, 2012, a written Notice of Claim on behalf of Plaintiff was served upon THE CITY OF NEW YORK, POLICE OFFICE JESSICA FIGUEROA, POLICE OFFICE ANTHONY DONATO and POLICE OFFICERS JOHN DOE #1-6 in compliance with General Municipal Law, Section 50-e. (A copy of the Notice of Claim is annexed hereto as Exhibit "A" and incorporated herein by reference;;)
8. Service of the Notice of Claim was made at least thirty (30) days before the commencement of this action;
9. More than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment of that claim has not been made and has been neglected and/or refused;
10. On October 12, 2012, Plaintiff was examined pursuant to General Municipal Law, Section 50-h;
11. Defendants are subject to the jurisdiction of this Court pursuant to CPLR Section 301 and/or 302;

AS AND FOR A FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S CIVIL RIGHTS

12. On or about March 3, 2012, at approximately 8:30 – 9:00 PM, Plaintiff drove his 2006 Mercedes Benz, CLS-Class, motor vehicle to drop off a passenger at West Tremont Ave. and Davidson Ave., Bronx, New York, as the passenger lived in the area. Plaintiff had stopped and double-parked

his vehicle to let his passenger out of the car. At that time, between six to eight (6-8) New York City Police Officers, including Defendant, POLICE OFFICER JESSICA FIGUEROA and Defendant, POLICE OFFICER ANTHONY DONATO, who were parked in a New York City Police Department van on the corner of West Tremont Ave. and Davidson Ave., opposite to where Plaintiff had stopped his vehicle, started up the van and pulled behind Plaintiff's motor vehicle. The Police van did not have its police lights activated, nor had they made any attempt to pull over Plaintiff's vehicle for a traffic stop before he stopped his car;

13. Plaintiff then began to move his car to a parking space when the operator of the Police van activated the van's police lights such that Plaintiff did stop his car. At this time three to four (3-4) New York City Police Officers did exit the Police van and approach Plaintiff's car, opened the driver's-side car door and yelled at Plaintiff to step out of his car. One (1) of the New York City Police Officers then grabbed Plaintiff by his clothing about the neck and chest area and forcibly pulled Plaintiff out of the car;
14. Once Plaintiff was out of his motor vehicle he asked the New York City Police Officers why he was being stopped and why he was forcibly removed from his car. The New York City Police Officers told Plaintiff to "shut up" and the three to four (3-4) Officers began to punch, kick and beat Plaintiff about the head, chest, body and legs. Plaintiff was knocked to the ground and dragged by his legs to between two parked cars where

the beating continued until Plaintiff lost consciousness. At no time before blacking out did the New York City Police Officers state why they had stopped Plaintiff, why they were beating him nor did they read Plaintiff his Miranda rights. At no time before commencing to beat Plaintiff did the New York City Police Officers demand that Plaintiff produce a driver's license. At no time before commencing to beat Plaintiff did the New York City Police Officers request that Plaintiff submit to a chemical test analysis of Plaintiff's breath, or actually attempt to administer such a test, nor did Plaintiff ever refuse to submit to such test;

15. Plaintiff regained consciousness in St. Barnabus Hospital, Bronx, New York some time later on March 3, 2012. Plaintiff was admitted to the hospital from 3-3-12 to 3-4-12 because of the serious nature of the injuries he sustained from being beaten by the New York City Police Officers. At no time did Plaintiff ever attempt to resist, or resist in any manner the New York City Police Officers, but tried to cooperate in all respects;
16. Plaintiff was arrested (Arrest # B12618642) and charged with allegedly having committed the violations of:

(M) V.T.L. 1192 (3) Operating a Motor Vehicle While
Under the Influence of Alcohol or drug;

(M) V.T.L. 1192 (4-a) Operating a Motor Vehicle While
Under the Influence of Alcohol or drug;

(V) V.T.L. 509 (1) Violations of the Vehicle and Traffic
Law;

(V) V.T.L. 1192 (1) Operating a Motor Vehicle While
Under the Influence of Alcohol or drug;

17. That the arresting officers are believed to be Defendants, POLICE OFFICER JESSICA FIGUEROA, Shield # 08633, POLICE OFFICER ANTHONY DONATO, Shield # 7509, and POLICE OFFICERS JOHN DOE # 1-6, inclusive;
18. That Plaintiff, JOHN HILL, was falsely accused, wrongly taken into custody, arrested, photographed, processed, questioned, arraigned, searched, imprisoned and confined by the Defendants and other unknown agents as a result of the unsupported and outrageous claims set forth above. His car was impounded allegedly for the purpose to "determine true owner," and on or about 4-4-12 he was issued a Substitute Ticket # AAR 3536396 alleging violation for disobeying traffic device;
19. That Plaintiff, JOHN HILL, was processed through the criminal justice system and subjected by Defendants and others to finger printing, photographing and placed in a cell;
20. That Plaintiff, JOHN HILL, was in police custody and confined to their custody and/or at St. Barnabus Hospital and/or to a cell and held by Defendants from March 3, 2012 until approximately noon March 5, 2012, a total time of incarceration of 33 hours;
21. That Plaintiff, JOHN HILL, was aware of his confinement and at no time did he consent to same;
22. That the New York City Police Officers refused to offer any aid or assistance for his injuries;

23. Defendants, individually, collectively and/or vicariously, by and through their agents, servants and/or employees, carelessly, negligently and recklessly: hired, trained, retained and/or supervised their employees, specifically the police officers of the NYPD including, but not limited to FIGUEROA, DONATO AND JOHN DOES # 1-6, in committing an assault and battery on Plaintiff; attacking the Plaintiff without cause or notification; failed to properly supervise the conduct of the police officers and their superiors at Defendant, THE CITY OF NEW YORK and the NYPD during the course of the arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff; failed to stop or otherwise prevent the excessive physical and verbal abuse of Plaintiff while he was outside his motor vehicle; failed to provide Plaintiff with medical care; failed to prevent the police officers from falsely imprisoning the Plaintiff; failed to properly supervise and/or train the individual officers; failed to review the arrest and reasons therefore; failed to prevent Plaintiff's civil rights under the Fourth, Fifth, Eighth and Fourteenth Amendments from being violated; failed to train superior officers at the NYPD on the proper supervision of their charges; failed to train police officers on the use of force and the use of excessive force; failed to train and supervise Defendants on how to effect a lawful arrest; failed to train and supervise Defendants on how to apprehend and/or arrest a party without causing or doing physical or emotional harm; failed to train officers on how to respond and assess a scene properly; failed to investigate the background

and history of candidates hired for the position of police officers; failed to terminate the employment of officers for past unprofessional and improper acts so as to reinforce the message that misconduct will not be tolerated by the police force; failed to prevent the individual Defendants from assaulting, beating, verbally and physically abusing and/or causing physical and emotional injury to Plaintiff; falsely imprisoning Plaintiff; negligently and recklessly apprehending an innocent civilian who had no nexus to any underlying investigation; and in otherwise being careless and negligent;

24. The actions of the Defendants hereto described constitute an unlawful detention of Plaintiff in violation of Plaintiff's civil rights. As a result of the conduct and actions of the Defendants, who were acting under the color of law and who used excessive force, Plaintiff was deprived of his liberty and civil rights guaranteed by the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution and comparable provisions of the New York State Constitution;
25. Plaintiff is entitled to reasonable attorneys' fees and costs;
26. By reason of the foregoing and violation of Plaintiff's civil rights and the Constitution and laws of the United States by the Defendants, Plaintiff has been damaged in the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

AS AND FOR A SECOND CAUSE OF ACTION FOR VIOLATION OF
42 U.S.C. SECTION 1983

27. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs, "1" through "26" of this Complaint with the same force and effect as if more fully set forth herein at length;
28. Defendants, individually, collectively and/or vicariously, by and through their agents, servants and/or employees, carelessly, negligently and recklessly: hired, trained, retained and/or supervised their employees, specifically the police officers of the NYPD including, but not limited to, FIGUEROA, DONATO AND JOHN DOES #1-6, in committing an assault and battery on Plaintiff; attacking the Plaintiff without cause or notification; failed to properly supervise the conduct of the police officers and their superiors at Defendant, THE CITY OF NEW YORK and its police department, the NYPD during the course of the arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff; failed to stop or otherwise prevent the excessive physical and verbal abuse of Plaintiff while he was outside of his motor vehicle; failed to provide Plaintiff with medical care; failed to prevent the police officers from falsely imprisoning the Plaintiff; failed to properly supervise and/or train the individual officers; failed to review the arrest and reasons therefore; failed to prevent Plaintiff's civil rights under the Fourth, Fifth, Eighth and Fourteenth Amendments from being violated; failed to train superior officers at the NYPD on the proper supervision of their charges; failed to train police officers on the use of force and the use of excessive force; failed to train and supervise Defendants on how to effect a lawful arrest;

failed to train and supervise Defendants on how to apprehend and/or arrest a party without causing or doing physical or emotional harm; failed to train officers on how to respond and assess a scene properly; failed to investigate the background and history of candidates hired for the position of police officers; failed to terminate the employment of officers for past unprofessional and improper acts so as to reinforce the message that misconduct will not be tolerated by the police force; failed to prevent the individual Defendants from assaulting, beating, verbally and physically abusing, and/or causing physical and emotional injury to Plaintiff; falsely imprisoning Plaintiff; negligently and recklessly apprehending an innocent civilian who had no nexus to any underlying investigation; and in otherwise being careless and negligent;

29. At the time of the incident, Defendants and NYPD had rules, regulations and/or practices in effect regarding the use of force and/or excessive force during the course of an arrest, regardless of an alleged suspect's potential threat to the safety of the officers. Defendant, THE CITY OF NEW YORK and its police force, NYPD, allowed untrained officers to effectuate arrests and did not provide proper training;
30. The actions of the Defendants hereto described constitute an unlawful detention of Plaintiff in violation of Plaintiff's civil rights. As a result of the conduct and actions of the Defendants, who were acting under the color of law and who used excessive force, Plaintiff was deprived of his

- liberty and civil rights guaranteed by the Civil Rights Act of 1871 and 42 U.S.C. Section 1983 and comparable provisions of New York State Law.;
31. Pursuant to 42 U.S.C. Section 1988, Plaintiff is entitled to reasonable attorneys' fees and costs;
32. By reason of the foregoing and violation of Plaintiff's civil rights and the laws of the United States by the Defendants, Plaintiff has been damaged in the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

AS AND FOR A THIRD CAUSE OF ACTION FOR VIOLATION OF 42 U.S.C. SECTION 1981

33. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" of this Complaint with the same force and effect as if more fully set forth herein at length;
34. Defendants, individually, collectively and/or vicariously, by and through their agents, servants and/or employees, carelessly, negligently and recklessly: hired, trained, retained and/or supervised their employees, specifically the police officers of the NYPD including, but not limited to FIGUEORA, DONATO AND JOHN DOES #1-6, in committing an assault and battery on Plaintiff; attacking the Plaintiff without cause or notification; failed to properly supervise the conduct of the police officers and their superiors in Defendant THE CITY OF NEW YORK and its police department, the NYPD, during the course of the arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff;

failed to stop or otherwise prevent the excessive physical and verbal abuse of Plaintiff while he was outside his motor vehicle; failed to provide Plaintiff with medical care; failed to prevent the police officers from falsely imprisoning the Plaintiff; failed to properly supervise and/or train the individual officers; failed to review the arrest and reasons therefore; failed to prevent Plaintiff's civil rights under the Fourth, Fifth, Eight and Fourteenth Amendments from being violated; failed to train superior officers at the NYPD, on the proper supervision of their charges; failed to train police officers on the use of force and the use of excessive force; failed to train and supervise Defendants on how to effect a lawful arrest; failed to train and supervise Defendants on how to apprehend and/or arrest a party without causing or doing physical or emotional harm; failed to train officers on how to respond and assess a scene properly; failed to investigate the background and history of candidates hired for the position of police officers; failed to terminate the employment of officers for past unprofessional and improper acts so as to reinforce the message that misconduct will not be tolerated by the police force; failed to prevent the individual Defendants from assaulting, beating, verbally and physically abusing, and/or causing physical and emotional injury to Plaintiff; falsely imprisoning Plaintiff; negligently and recklessly apprehending an innocent civilian who had no nexus to any underlying investigation; and in otherwise being careless and negligent;

35. The actions of the Defendants hereto described constitute an unlawful detention of Plaintiff in violation of Plaintiff's civil rights. As a result of the conduct and actions of the Defendant, who were acting under the color of law and who used excessive force, Plaintiff was deprived of his liberty and civil rights guaranteed by the Civil Rights Act of 1871 and 42 U.S.C. Section 1981 and comparable provisions of New York State Law;
36. Pursuant to 42 U.S.C. Section 1988, Plaintiff is entitled to reasonable attorneys' fees and costs;
37. By reason of the foregoing and violation of Plaintiff's civil rights and laws of the United States by the Defendants, Plaintiff has been damaged in the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

AS AND FOR A FOURTH CAUSE OF ACTION FOR ASSAULT

38. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" of this Complaint with the same force and effect as if more fully set forth herein at length;
39. At all times material hereto, upon information and belief, Defendant FIGUEORA, DONATO AND JOHN DOE #1-6 knowingly, intentionally and negligently assaulted Plaintiff with a dangerous weapon, at the aforementioned date, time and place;

40. Defendant FIGUEROA, DONATO AND JOHN DOE # 1-6 acted in violation of, among other things, the New York State Penal Law Sections: 120.10, 120.05 and 120.00;
41. As a result of the foregoing and statutory violations, Plaintiff sustained severe and permanent personal injuries;
42. As a result of the foregoing willful, wanton, intentional, grossly negligent and reckless conduct and criminal conduct, Plaintiff has been damaged, including punitive damages, in a sum of Three Million Dollars (\$3,000,000.00);

AS AND FOR A FIFTH CAUSE OF ACTION FOR BATTERY

43. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" and "38" through "42" of this Complaint with the same force and effect as if more fully set forth herein at length;
44. At all times material hereto, upon information and belief, Defendant FIGUEORA, DONATO AND JOHN DOE # 1-6 committed harmful and offensive contact to Plaintiff's person with a dangerous weapon, at the aforementioned date, time and place;
45. As a result of the foregoing and statutory violations, Plaintiff sustained severe and permanent personal injuries;
46. As a result of the foregoing willful, wanton, intentional, grossly negligent and reckless conduct and criminal conduct, Plaintiff has been damaged,

including punitive damages, in a sum of Three Million Dollars
(\$3,000,000.00);

AS AND FOR A SIXTH CAUSE OF ACTION FOR FALSE IMPRISONMENT

47. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" and "38" through "42" and "43" through "46" of this Complaint with the same force and effect as if more fully set forth herein at length;
48. Based on the actions of the Defendants, Plaintiff, JOHN HILL, was unlawfully restrained and confined in a bounded area by Defendants. Plaintiff was unable to escape because of the threats of and the attack by Defendants;
49. As such, Plaintiff, JOHN HILL, was falsely imprisoned by the Defendants;
50. As a result of the foregoing willful, wanton, intentional, grossly negligent and reckless conduct and criminal conduct, Plaintiff has been damaged, including punitive damages, in a sum of Three Million Dollars (\$3,000,000.00);

AS AND FOR A SEVENTH CAUSE OF ACTION FOR NEGLIGENCE

51. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" and "38" through "42" and "43" through "46" and "47"

through "50" of this Complaint with the same force and effect as if more fully set forth herein at length;

52. Defendants, individually, collectively and/or vicariously, by and through their agents, servants and/or employees, carelessly, negligently and recklessly; hired, trained, retained and/or supervised their employees, specifically the police officer of the NYPD including, but not limited to, FIGUEORA, DONATO AND JOHN DOES #1-6, in committing an assault and battery on Plaintiff; assaulting Plaintiff with a deadly weapon, attacking the Plaintiff without cause or notification; failed to properly supervise the conduct of the police officers and their superiors during the course of the arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff; failed to stop or otherwise prevent the excessive physical and verbal abuse of Plaintiff while he was outside of his motor vehicle; failed to provide Plaintiff with medical care; failed to prevent the police officers from falsely imprisoning the Plaintiff; failed to properly supervise and/or train the individual officers; failed to review the arrest and reasons therefore; failed to prevent Plaintiff's civil rights under the Fourth, Fifth, Eighth and Fourteenth Amendments from being violated; failed to train superior officers at the NYPD on the proper supervision of their charges; failed to train police officers on the use of force and the use of excessive force; failed to train and supervise Defendants on how to effect a lawful arrest; failed to train and supervise Defendants on how to apprehend and/or arrest a party without causing or

doing physical or emotional harm; failed to train officers on how to respond and assess a scene properly; failed to investigate the background and history of candidates hired for the position of police officers; failed to terminate the employment of officers for past unprofessional and improper acts so as to reinforce the message that misconduct will not be tolerated by the police force; failed to prevent the individual Defendants from assaulting, beating, verbally and physically abusing, and/or causing physical and emotional injury to plaintiff; falsely imprisoning Plaintiff; negligently and recklessly apprehending an innocent civilian who had no nexus to any underlying investigation; and in otherwise being careless and negligent;

53. As a result of the foregoing, Plaintiff, JOHN HILL, was caused to suffer serious and permanent personal injuries; he became sick, sore, lame and disabled; was confined to home and bed; caused to sustain a loss of enjoyment of life; has incurred and in the future will incur expenses for the treatment of his injuries; became obligated to expend monies for physicians' services and other medical care and treatment and had required and in the future will require additional medical care and treatment as a result of the personal injuries, all to his damage;
54. By reason of the foregoing and negligence, gross negligence, carelessness and recklessness by the Defendants, Plaintiff has been damaged in the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
NEGLIGENT HIREING AND SUPERVISION

55. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" and "38" through "42" and "43" through "46" and "47" through "50" and "51" through "54" of this Complaint with the same force and effect as if more fully set forth herein at length;
56. Defendant, THE CITY OF NEW YORK, prior to hiring Defendants, FIGUEROA, DONATO and JOHN DOES # 1-6, failed to investigate the qualifications, competency, capacity, abilities and capabilities of Defendants;
57. Had Defendant, THE CITY OF NEW YORK, investigated the qualifications, competency, capacity, abilities and capabilities of Defendants, FIGUEORA, DONATO and JOHN DOES # 1-6, employment of Defendants would not, or should not, have been granted;
58. Defendant, THE CITY OF NEW YORK, its agents, servants and/or employees failed to adequately train, monitor, supervise, test, inspect and examine FIGUEORA, DONATO and JOHN DOES # 1-6's performance of their duties;
59. Upon information and belief, Defendant, THE CITY OF NEW YORK, through their agents, servants and/or employees had actual and/or constructive notice of Defendants' deficiencies, but took no action despite the notice;

60. The injuries sustained by Plaintiff, JOHN HILL, were caused in whole, or in part, by the negligence of Defendant, THE CITY OF NEW YORK, its agents, servants and/or employees in that Defendants were negligent in, among other things, hiring, training, supervising, instructing, staffing and monitoring Defendants, FIGUEORA, DONATO and JOHN DOES # 1-6; in failing to provide adequate personnel; in failing to staff sufficient and adequate personnel to monitor, supervise and insure the safety of the people; in failing to monitor the performance of agents, servants, laborers and/or employees, including, but not limited to Defendants, FIGUEORA, DONATO and JOHN DOES # 1-6; in failing to replace Defendants, FIGUEORA, DONATO and JOHN DOES # 1-6 after notice of their inability to perform their duties satisfactorily; and in otherwise being careless and negligent;
61. Had Defendant, THE CITY OF NEW YORK, made the above-stated inquiry, or in the alternative, had said Defendant reviewed and analyzed the information obtained in a proper manner, privileges and/or employment would not have been granted and/or renewed;
62. As a result of the negligent hiring and retention of the Defendants, Plaintiff has been damaged in a sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

WHEREFORE, Plaintiff, JOHN HILL, demands judgment as follows:

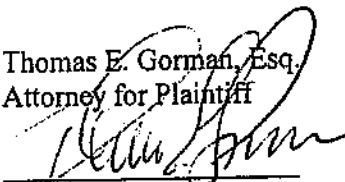
- a. A judgment against Defendants for the sum, including punitive damages of Three Million Dollars (\$3,000,000.00) on the First Cause of Action;

- b. A judgment against Defendants for the sum, including punitive damages of Three Million Dollars (\$3,000,000.00) on the Second Cause of Action;
- c. A judgment against Defendants for the sum, including punitive damages of Three Million Dollars (\$3,000,000.00) on the Third Cause of Action;
- d. A judgment against Defendants for the sum, including punitive damages of Three Million Dollars (\$3,000,000.00) on the Fourth Cause of Action;
- e. A judgment against Defendants for the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00) on the Fifth Cause of Action;
- f. A judgment against Defendants for the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00) on the Sixth Cause of Action;
- g. A judgment against Defendants for the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00) on the Seventh Cause of Action;
- h. A judgment against the Defendants for the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00) on the Eighth Cause of Action;
- i. Costs, disbursements, interests and attorneys' fees on all causes of action.

Dated: White Plains, New York
March 19, 2013

Thomas E. Gorman, Esq.
Attorney for Plaintiff

By:


Thomas E. Gorman, Esq.
244 Westchester Ave.
Suite 410
White Plains, NY 10604
(914) 684-1155

To: THE CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
1 Centre Street, Room 1225
New York, NY 10007

POLICE OFFICER JESSICA FIGUEROA
46th Precinct
2120 Ryer Ave.
Bronx, New York 10457

POLICE OFFICER ANTHONY DONATO
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

OFFICERS JOHN DOE #1-6
46th Precinct
2120 Ryer Ave.
Bronx, New York 10457

B

Case Details - Summary

CASE INFORMATION

Court: **Bronx Criminal Court**
Case #: **2012BX013725**
Defendant: **Hill, Johnny**

Defendant

Name: **Hill, Johnny**
Birth Year: **1971**
NYSID: **7886964N**

Incident and Arrest

Incident

Date: **March 3, 2012**
CJTN: **65328095Z**

Arrest

Date & Time: **March 3, 2012 21:10**
Arrest #: **B12618642**

Officer

No Officer Information on File

Attorney Information

Defense Attorney

Name:
Type: **Legal Aid**
Court Date: **April 24, 2012**
Court Part: **M3**
Address: **1020 Grand Concourse, Bronx, NY 10451**
Phone: **718-579-3000**

Assistant District Attorney

Name:
Assigned: **March 5, 2012**

Next Appearance

Date: **September 17, 2013**
Court: **Bronx Criminal Court**
Part: **MSG**

Docket Sentence

No Sentence Information on File

C

015-220

-----x

IN THE MATTER OF THE CLAIM
OF

JOHN HILL,

Claimant,

-against-

THE CITY OF NEW YORK,

Respondent.

BLA #2012PI013868

-----x

Gordon & Silber, P.C.
355 Lexington Avenue
New York, New York 10017

October 18, 2012
3:05 p.m.

50-H HEARING of JOHN HILL, the Claimant
in the above-entitled action, held at the above
time and place, pursuant to Notice, taken
before Brittany Saline, a shorthand reporter
and Notary Public within and for the State of
New York.

A P P E A R A N C E S:

THOMAS E. GORMAN, ESQ.

Attorney for Claimant

244 Westchester Avenue

Suite 410

White Plains, New York 10604

GORDON & SILBER, P.C.

Attorneys for Respondent

355 Lexington Avenue

New York, New York 10017

BY: CHRIS BLACKMAN, ESQ.

1
2 J O H N H I L L, the witness herein, having
3 been first duly sworn before a Notary Public of
4 the State of New York, was examined and
5 testified as follows:

6 EXAMINATION

7 BY MR. BLACKMAN:

8 Q. Please state your name for the
9 record.

10 A. John Hill.

11 Q. What is your address?

12 A. 753 Crotona Park North, Bronx, New
13 York 10457.

14 Q Good afternoon, Mr. Hill. My name
15 is Chris Blackman. I am an attorney with the
16 law firm of Gordon & Silber. Today I am acting
17 as a Hearing Officer for the City of New York.

18 I am going to ask you some questions
19 regarding a claim you are making against the
20 City and the NYPD. Please keep your answers to
21 my questions, sir, in verbal form, because the
22 court reporter can't take down nonverbal
23 gestures, like nods of your head or waves of
24 your hands.

25 If you don't understand any of my

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Hill

questions or the words I use to form those questions, let me know. I don't want you answering something you don't understand. Please keep your voice up so I can hear you, your attorney can hear you, and the court reporter can hear you.

I imagine you will be able to anticipate many of my questions before I finish asking them. Just please wait for me to finish before giving your answer so the court reporter can take down my question and your answer without any interruption.

Finally, if you need to take a break for any reason, that's fine as long as there is not an open question pending.

Do you understand my instructions, sir?

A Yes.

Q How long have you lived 753 Crotona Park?

A Three years.

Q Where did you live before that, sir?

A 318 East 149th Street, Bronx, New York 10451.

1 Hill

2 Q How long did you live at that
3 address, sir?

4 A Five years.

5 Q Where did you live before that, sir?

6 A 340 Morris Avenue.

7 Q How long did you live on Morris,
8 approximately?

9 A Approximately ten.

10 Q What's your date of birth?

11 A January 11, 1971.

12 Q What's your Social Security, sir?

13 A 097-58-1066.

14 Q And are you currently employed, sir?

15 A Yes.

16 Q What's the name of your employer?

17 A Inside Investigations.

18 Q What do you do for Inside
19 Investigations?

20 A Private investigator, insurance
21 fraud.

22 Q Did you also have that position,
23 sir, in March 2012?

24 A Yes.

25 Q Sir, were you subject to an arrest

1 Hill

2 on Saturday, March 3, 2012?

3 A Yes.

4 Q Approximately what time did that
5 arrest occur at?

6 A 9 p.m.

7 Q Where was the location generally
8 where the facts giving rise to the arrest
9 occurred?

10 A Tremont Avenue in the Bronx.

11 Q More precisely, is that West Tremont
12 Avenue near Davidson?

13 A Yes.

14 Q As a result of this incident and the
15 arrest and the incarceration, did you sustain
16 any injuries to your body?

17 A Yes.

18 Q What parts of your body were
19 injured, sir?

20 A My neck, my back, my sciatic nerve,
21 and I have a testicular mass.

22 Q Sir, prior to this incident, have
23 you ever injured your neck?

24 A No.

25 Q Prior to this incident, sir, had you

1 Hill

2 ever injured your back?

3 A No.

4 Q Prior to this incident, sir, had you
5 ever aggravated your sciatic nerve?

6 A No.

7 Q Sir, prior to this incident, had you
8 ever experienced the testicular mass you're
9 experiencing now?

10 A No.

11 Q Sir, when was the first time you
12 received any medical attention for any of these
13 injuries you mentioned?

14 A March 3rd.

15 Q Was that immediately after the
16 incident?

17 A During the arrest.

18 Q Where did you first receive medical
19 attention?

20 A St. Barnabas Hospital, Bronx.

21 Q How did you get from the location
22 where the incident occurred to St. Barnabas?

23 A Ambulance.

24 Q Do you know if that was an FDNY
25 ambulance or a private ambulance or something

1 Hill

2 else, if you know?

3 A I don't know.

4 Q Once you were at St. Barnabas, sir,
5 what complaints did you make or what injuries
6 did you complain of, if any?

7 A Complained of my lower body having
8 pain to it.

9 Q By lower body, sir, are you
10 referring to your genitals?

11 A Genitals, my legs, blood in my
12 urine.

13 Q What did they do for you at St.
14 Barnabas?

15 A Gave me pain medication and a
16 sedative.

17 Q Did they provide you with any
18 further treatment of the pain medication or
19 sedative for your lower body injuries?

20 A I was in observation for two days.

21 Q You were at the hospital for two
22 days?

23 A Yes. Three days. I went back on
24 the third day.

25 Q Just to be clear, sir, you were at

1 Hill

2 St. Barnabas for approximately two days after
3 the accident?

4 A Yes.

5 Q And then you left and then came
6 back?

7 A Yes.

8 Q Approximately what time did you
9 leave on Monday?

10 A Sometime in the afternoon.

11 Q Just to be clear, you did leave on
12 Monday, which would have been the 5th?

13 A I left -- I left on Sunday, which
14 would have been the 4th. That's two days. I
15 was still in police custody. I was taken back
16 to incarceration.

17 I still was experiencing the same
18 symptoms, so they transported me back to the
19 hospital on the 5th.

20 Q While you were still in police
21 custody?

22 A Correct.

23 Q Back to St. Barnabas?

24 A Yes.

25 Q During that first period when you

1 Hill

2 were at St. Barnabas, did you receive any other
3 treatment, other than the pain medication and
4 the sedative?

5 A I don't remember what else. I am
6 not sure.

7 Q When you returned, sir, on the 5th,
8 what treatment, if any, did you receive at St.
9 Barnabas?

10 A More pain medication and icepack.

11 Q Was the icepack for the pain you
12 were feeling in your lower body?

13 A Yes.

14 Q After going to St. Barnabas on the
15 5th, did you return to incarceration or what
16 happened?

17 A Yes.

18 Q How long, sir, were you incarcerated
19 for after the arrest?

20 A I don't understand the question.

21 Q Just from the time of the arrest,
22 how long were you in police custody, even if
23 you were at the hospital?

24 A Three days.

25 Q Were you released on the 5th or the

1 Hill

2 6th?

3 A 5th.

4 Q Sir, following your release on the
5 5th, did you seek further medical treatment for
6 the injuries you described?

7 A Yes.

8 Q When was the first time after your
9 release you sought medical treatment?

10 A I went to a urologist in July and
11 neurologist April.

12 Q I will start with the neurologist,
13 sir. Do you remember the person's name?

14 A No, I don't remember his name.

15 Q Do you remember where did he have
16 his office?

17 A St. Barnabas Hospital.

18 Q Why did you go to the neurologist at
19 that time?

20 A From pain to my leg and sciatic
21 nerve.

22 Q Sir, before this incident, had you
23 ever experienced pain in your sciatic nerve?

24 A No.

25 Q Which one of your legs, or is it

1 Hill

2 both of your legs which experiences the sciatic
3 pain?

4 A It's both legs.

5 Q Is it more pronounced in one leg
6 than the other?

7 A The right leg.

8 Q Did they perform a CT scan, an
9 x-ray, or an MRI at that time?

10 A At the neurologist?

11 Q Yes, sir.

12 A No, sir.

13 Q How many times did you see this
14 neurologist?

15 A I see him in July and I have an
16 appointment next month.

17 Q You saw him in April, July, and you
18 have an appointment then in November?

19 A Yes.

20 Q What happened at the appointments in
21 April and July with the neurologist?

22 A I only went to the neurologist in
23 July. April is the urologist.

24 Q What happened with the neurologist
25 in July?

1 Hill

2 A He gave me some pain medication and
3 told me to do some therapy, some different leg
4 lifts, and exercise my leg when I can give it
5 rest.

6 Q Just to be clear, you can't remember
7 the name of this neurologist?

8 A No. I don't remember his name right
9 now.

10 Q And you have an appointment with
11 that person in November?

12 A Yes.

13 Q You saw a urologist in April?

14 A Yes.

15 Q Did you see this urologist once or
16 more than once?

17 A I have seen him once. I have to go
18 back.

19 Q Do you have a future appointment?

20 A Yes.

21 Q When is that?

22 A I want to say December.

23 Q Do you remember the name of the
24 urologist?

25 A No. He is at St. Barnabas too.

1 Hill

2 Q What was discussed in the April 2012
3 appointment with the urologist?

4 A Different treatment methods for the
5 mass in my groin area.

6 Q What type of treatment was
7 discussed?

8 A Therapy, acupuncture, and worst case
9 scenario, surgery.

10 Q Since then has this mass dissipated
11 or is it the same since the accident?

12 A It's a little smaller, but it's
13 still there.

14 Q Did you ever follow up for any
15 physical therapy?

16 A Not yet.

17 Q Other than going to St. Barnabas
18 originally and then following up with the
19 neurologist and urologist, have you seen any
20 other doctors in connection with this accident?

21 A No.

22 Q Have you gone to any other
23 facilities for treatment?

24 A No.

25 Q Have you received any x-rays, CT

1 Hill

2 scans, MRIs, for any parts of your body
3 following this incident?

4 A Yes. I received -- I am not sure
5 which one, but St. Barnabas took some tests.

6 Q What parts of your body were tested?

7 A Lower body and my back.

8 Q When were those tests done?

9 A Not sure of the exact date.

10 Q While you were in the hospital or at
11 the appointment in April?

12 A When I was in the hospital.

13 Q So on the 3rd, the 4th, or the 5th?

14 A Yes.

15 Q Did anyone ever discuss the results
16 of those tests with you?

17 A Yes.

18 Q What was discussed?

19 A Testicular mass.

20 Q Did you ever previously have
21 treatment or surgery on your neck or back or
22 genitals?

23 A No.

24 Q Have you had to pay for your medical
25 treatment?

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Hill

A No.

Q Has it been paid for by Medicare or Medicaid?

A No.

Q Is there an outstanding bill?

A I'm pretty sure.

Q Do you know the amount of the bill?

A No.

Q Sir, do you receive Medicare or Medicaid?

A No.

Q Do you have insurance through your employer?

A Not active yet.

Q Sir, did you miss any time from work in connection with this incident?

A No.

Q Sir, have you ever previously made any other claims against the City or the State of New York?

A No.

Q Have you ever appeared in this office and given testimony concerning a claim?

A No. This office?

1 Hill

2 Q Yes, sir. You didn't appear in this
3 office on March 29, 2012 concerning a claim
4 against the NYPD and the City?

5 A I'm not sure in this office.

6 Q Do you have any claims against the
7 city?

8 A Not related to this.

9 Q But just in general, other claims?

10 A Yes.

11 Q Do you have one claim or more than
12 one claim?

13 A One claim.

14 Q Just generally, sir, what is the
15 nature of that?

16 A That is a broken rib.

17 Q Is that also an incident with the
18 police?

19 A Yes.

20 Q Did you have any other open claims
21 against the city?

22 A No.

23 Q What's the status of that other
24 claim, sir? Is it still pending or has it been
25 resolved?

1 Hill

2 A Pending.

3 Q Sir, have you ever been employed by
4 the city or any of the city's departments?

5 A No.

6 Q Sir, immediately before this
7 incident, were you the operator of a motor
8 vehicle?

9 A Yes.

10 Q What type of motor vehicle were you
11 operating?

12 A Mercedes-Benz.

13 Q Was that a 2006 CLS-Class?

14 A Yes.

15 Q What was the color of that vehicle,
16 sir?

17 A Pewter.

18 Q Was that a four-door sedan,
19 two-door?

20 A Four-door.

21 Q It's a sedan, right?

22 A Yes.

23 Q Back in March of 2012, were you the
24 owner of this vehicle?

25 A Yes.

1 Hill

2 Q Was the vehicle registered under
3 anyone else's name?

4 A No.

5 Q Were you the owner or was it a
6 leased vehicle?

7 A I'm the owner. It had a temporary
8 tag.

9 Q Why did it have a temporary tag?

10 A Because it wasn't registered yet.

11 Q Had you just recently purchased it?

12 A Yes.

13 Q When did you purchase it, sir?

14 A Approximately two weeks before this
15 incident.

16 Q Did it have a paper license plate?

17 A Yes.

18 Q When was that license plate due to
19 expire?

20 A I am not sure when it was due to
21 expire.

22 Q Was it still good on March 3, 2012?

23 A Yes.

24 Q At the time of this incident, sir,
25 where were you coming from?

1 Hill

2 A My house.

3 Q Just generally, sir, what route did
4 you take from your house to the location where
5 this incident occurred?

6 A I took Daytona Avenue to Tremont and
7 Tremont to where the incident occurred.

8 Q In that area, sir, is Tremont a
9 street that runs east to west?

10 A Yes.

11 Q Were you headed westbound or
12 eastbound?

13 A West.

14 Q Had the incident not occurred, what
15 was your intended destination?

16 A To drop off two passengers.

17 Q Where were you going to drop them
18 off?

19 A The place where the incident
20 happened.

21 Q Near Davidson Avenue off of Tremont?

22 A Yes.

23 Q At the time this incident occurred,
24 were there passengers still in your vehicle or
25 had they already gotten out?

1 Hill

2 A Passengers were still in the
3 vehicle.

4 Q What were the names of the
5 passengers in your vehicle?

6 A One is Wayne Bradley, and his friend
7 Tonya.

8 Q Where does Mr. Bradley live?

9 A Burnside Avenue and Tremont Avenue.

10 Q Who is Tonya; his girlfriend, his
11 friend?

12 A A friend.

13 Q Do you know where Tonya lives?

14 A No.

15 Q Before this incident occurred, sir,
16 how long had you been at your house?

17 A All day.

18 Q At any point during the day, sir,
19 had you consumed any alcoholic beverages?

20 A No.

21 Q Had you consumed any illegal or
22 prescription drugs during the day?

23 A I took prescription -- I had a pain
24 pill in the morning.

25 Q Just generally, sir, were you

1 Hill

2 prescribed that pain pill?

3 A Yes.

4 Q Was that in connection with your
5 rib?

6 A No.

7 Q Just generally, sir, why were you
8 taking the prescription pain pill?

9 A For my arm.

10 Q Which arm, sir?

11 A Right.

12 Q Do you recall what type of pain pill
13 it was?

14 A Motrin 600.

15 Q Did you just take one that day or
16 more than one?

17 A One.

18 Q Sir, when this incident occurred,
19 was it dark out?

20 A Yes.

21 Q Was your vehicle operating with
22 headlights and taillights?

23 A Yes.

24 Q Was there any preexisting body
25 damage to the vehicle when you picked it up?

1 Hill

2 Was there anything damage to the outside of
3 your car at the time of the incident?

4 A No.

5 Q All your windows and windshields
6 were intact?

7 A Yes.

8 Q And the vehicle was functioning
9 normally from a mechanical perspective?

10 A Yes.

11 Q Generally, sir, what's the speed
12 limit on Tremont in that area, if you know?

13 A Approximately 20-miles, 25, city
14 limit.

15 Q When you first noticed police, sir,
16 was your vehicle moving or was it stationary?

17 A Stationary.

18 Q Did you bring your vehicle to a stop
19 to let out your passengers?

20 A Yes.

21 Q Did you stop your vehicle before or
22 after you had crossed over Davidson?

23 A I am not sure.

24 Q Can you recall the last street that
25 you did drive by before you stopped your

1 Hill

2 vehicle?

3 A Jerome Avenue.

4 Q The area where you stopped your
5 vehicle, sir, do you recall any landmarks or
6 building numbers to specify where you were?

7 A No.

8 Q Is it possible to say that you
9 stopped your vehicle in an area between Jerome
10 and Davidson?

11 A Yes.

12 Q Were you closer to Jerome, sir, or
13 closer to Davidson or more in the middle of
14 that area?

15 A Closer to Davidson.

16 Q Can you say how far, in terms of car
17 lengths, the front of your vehicle was from
18 Davidson?

19 A No.

20 Q At this time, sir, were there
21 buildings to your right?

22 A Yes.

23 Q And there was a sidewalk to your
24 right?

25 A Yes.

1 Hill

2 Q Were there vehicles parked to the
3 immediate right of your vehicle in the
4 westbound direction you were headed on Tremont?

5 A I don't understand the question.

6 Q Were there vehicles parked to your
7 immediate right when you were headed westbound
8 on Tremont?

9 A There were vehicles parked, but not
10 right next to me.

11 Q I am just asking generally.

12 A Generally, yes.

13 Q West Tremont, in that area, is a
14 two-way road?

15 A Yes.

16 Q The area where this incident
17 occurred, sir, how many lanes of traffic were
18 there in the westbound direction you were
19 headed?

20 A One.

21 Q Was there also one in the eastbound
22 direction?

23 A Yes.

24 Q Are these lanes separated by a
25 double yellow line?

1 Hill

2 A Yes.

3 Q Just generally, sir, not necessarily
4 in the area where this incident occurred, but
5 overall, is parking permitted on the side of
6 West Tremont in this area?

7 A Yes.

8 Q Sir, what was the weather like at
9 the time of this incident; was it clear or was
10 there any sort of participation?

11 A Clear.

12 Q Just to be clear, sir, so it wasn't
13 raining, snowing, anything of that nature, no
14 fog?

15 A No.

16 Q Were you operating your windshield
17 wipers in your vehicle for any reason?

18 A No.

19 Q As you're proceeding westbound, what
20 caused you to stop in the area where you
21 stopped your vehicle?

22 A I was letting off passengers.

23 Q Were you told by one of the
24 passengers that this is where you should stop?

25 A Yes.

1 Hill

2 Q When you stopped your vehicle, did
3 you stop it in its lane of traffic or did you
4 pull to the side of the road or something else?

5 A Pulled into the side of the road.

6 Q Was this in the area where vehicles
7 are typically permitted to park?

8 A Yes.

9 Q And the particular area where you
10 pulled into, sir, was that an authorized
11 parking spot or was it something for a bus,
12 fire hydrant, what have you?

13 A No.

14 Q This was a legal parking stop?

15 A Yes.

16 Q Were there any vehicles parked
17 directly in front of your vehicle in the area
18 where your parked?

19 A Yes.

20 Q Were there any vehicles parked
21 behind you in the area where you were parked?

22 A Yes.

23 Q Did you notice any signage or any
24 fire hydrant, bus stop sign, that would have
25 indicated that this was an illegal parking

1 Hill

2 spot?

3 A No.

4 Q Sir, before turning into this
5 parking spot, did you activate a turn signal?

6 A I don't remember.

7 Q When you pulled into the spot, sir,
8 how long before you noticed the police?

9 A Approximately five minutes.

10 Q During this five-minute period, did
11 your passengers remain in the vehicle with you?

12 A Yes.

13 Q Why had you stopped your vehicle in
14 this particular location for five minutes?

15 A To let the passengers out.

16 Q Why did they remain in the vehicle
17 after you had stopped for approximately five
18 minutes, if they were getting out?

19 A To say goodbyes.

20 Q At that time were you waiting to
21 pick someone else up?

22 A No.

23 Q Were they waiting to meet someone?

24 A No.

25 Q Were they getting out of your

1 Hill

2 vehicle because they were returning to their
3 home?

4 A Yes.

5 Q During this five-minute period,
6 other than police, did anyone come up to your
7 vehicle?

8 A No.

9 Q During this five-minute period that
10 you were in this parking space on the side of
11 Tremont --

12 MR. GORMAN: I think it was
13 Davidson.

14 Q Did you stop your vehicle on Tremont
15 or Davidson?

16 A Tremont.

17 Q Was your vehicle equipped with those
18 blinking hazard lights?

19 A Yes.

20 Q Did you activate those hazard lights
21 during the five-minute period that you were in
22 the spot?

23 A No.

24 Q Do you know if you're required to
25 pay any sort of parking meter at that time of

1 Hill

2 the evening for that particular spot?

3 A No.

4 Q Were you aware of any illegal drugs
5 or illegal weapons in your vehicle, sir?

6 A No.

7 Q Were you ever accused of having any
8 illegal drugs or illegal weapons in your
9 vehicle, sir?

10 A No.

11 Q After this five-minute period, what
12 was the first thing that alerted you that there
13 were police around?

14 A Police lights.

15 Q Did these come from a police
16 vehicle?

17 A A police van, marked van.

18 Q Did this van pull up behind you, to
19 your side, or something else?

20 A Caddy corner to my back.

21 Q So on the rear driver side of the
22 vehicle?

23 A Yes.

24 Q Prior to it pulling up to that part
25 of your vehicle, sir, had you observed the

1 Hill

2 police vehicle at all that evening?

3 A No.

4 Q Sir, can you recall the last time
5 your vehicle stopped before you parked it in
6 that location? If you had to stop at the
7 intersection of Tremont or Jerome or anything
8 else?

9 A No.

10 Q You can't recall?

11 A I can't recall the last stop. It
12 wasn't Jerome.

13 Q Before you had pulled your vehicle,
14 sir, were you being pursued by police for any
15 reason?

16 A No.

17 Q And in addition to seeing these
18 lights, sir, did you hear sirens?

19 A No.

20 Q At that time, did you have any idea
21 why the police were approaching?

22 A No.

23 Q After you saw the lights, did you
24 observe police get out of the van?

25 A I didn't observe them get out of the

1 Hill

2 van. I observed them on the side of my
3 windows, on both sides of the vehicle.

4 Q Originally, how many police did you
5 observe around the sides of your vehicle?

6 A Four to six.

7 Q In this five-minute period that your
8 vehicle was parked in the side of the road, was
9 anyone smoking or drinking in the vehicle?

10 A No.

11 Q Were the windows up or down at that
12 time?

13 A Down.

14 Q After seeing these four to six
15 police, they were on both sides of your
16 vehicle, correct?

17 A Correct.

18 Q What happened after you originally
19 saw this police?

20 A An officer came to my window and
21 told me to step out of the vehicle.

22 Q When the officer told you to get out
23 of the vehicle, do you know the name of that
24 officer?

25 A No, not sure.

Hill

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Q Do you know what he looked like?

A Male, Caucasian, 5'6", 230, brown hair, brown eyes.

Q Other than telling you to get out of the vehicle, did you comply?

A No.

Q What did you say, if anything, in response?

A "Why did you stop me? Why are you behind me?"

Q And what, sir, if anything, was said to you in response?

A Nothing.

Q What was the next thing that happened?

A Officer opened up my car door and grabbed me and pulled me out.

Q The other people in your vehicle, were they also removed?

A Yeah.

Q Was that at the same time you were grabbed?

A I'm not sure.

Q You were grabbed by this heavysset

1 Hill

2 Caucasian officer?

3 A Correct.

4 Q Once you were grabbed and had been
5 removed from the vehicle, what happened after
6 that?

7 A While I was being grabbed and
8 removed, I was being punched in the stomach and
9 my head and clothes being grabbed and pulled to
10 the floor.

11 Q Were you punched by this same
12 officer who was grabbing you or did another
13 officer punch you at the same time?

14 A It was more than one officer.

15 Q After you were being grabbed, you
16 said you were punched in the stomach?

17 A Yes.

18 Q Did you fall to the ground at that
19 point?

20 A Yes.

21 Q When you fell to the ground, sir,
22 was that on the driver's side of your vehicle
23 or was it on the front or back of your vehicle?

24 A Driver's side of the vehicle.

25 Q Actually in Tremont Avenue?

Hill

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A Correct.

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Q At that time was the police van blocking westbound flow of traffic in Tremont?

5

6

7

A He wasn't blocking traffic, but it was double parked in Tremont. Cars can go around.

8

9

10

Q At any point before this officer removed you from your vehicle, did you attempt to flee with the vehicle or flee on foot?

11

12

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14

15

A No.

16

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18

19

Q Before this officer removed you from the vehicle, were you asked for any sort of identification, registration, or any other type of documentation?

20

21

22

23

24

25

Q Can you recall the exact language you used when the officer asked you to step out of the vehicle?

A I don't know. I am not sure.

Q And then when you were down on the ground next to your vehicle, what happened at that point?

A Caucasian officer grabbed me by shirt and started dragging me in between two

1 Hill

2 cars, front of my car and in between the next
3 car. One of the officers were kicking me while
4 they was dragging me in between, and he got on
5 his knees and just started punching me,
6 punching me, while he was kicking me and
7 punching me.

8 Q During this exchange, from the time
9 you had been grabbed and taken out of the car
10 up to the point where you were in front of the
11 car, did the police say anything to you?

12 A No, not to me.

13 Q Did you say anything to the police?

14 A No.

15 Q Once you were outside of the car,
16 sir, did you attempt to flee in any way?

17 A No.

18 Q Did you attempt to resist or strike
19 any of the officers?

20 A No.

21 Q How long, sir, did this engagement
22 with the police last from the time you had been
23 taken out of the car until you were taken to
24 the front of the vehicle?

25 MR. GORMAN: I am not sure I

1 Hill

2 understand the question.

3 Q I will rephrase. How long did the
4 whole time that the police were handling you
5 did that last for?

6 MR. GORMAN: Note my objection to
7 the form of the question. You can answer
8 it, if you can.

9 A I was rendered unconscious. I am
10 not sure.

11 Q Can you recall, specifically, how
12 many police were involved in dragging you from
13 the vehicle and placing you in front of the
14 vehicle and what happened there?

15 Was it all four to six or was it
16 just two to three or something else?

17 A I don't remember how many of them at
18 that point.

19 Q During this time, what parts of your
20 body were contacted by the police? You
21 mentioned your stomach. What other parts of
22 your body?

23 A My chest, my head. They were
24 punching me in my chest and head and kicking me
25 in my leg, groin area, my buttocks, my back.

Hill

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Q All over your upper body and as you mentioned, your groin as well and your legs?

A Yes.

Q Is there any way you can say approximately how many blows you received to different parts of your body?

A Before I went unconscious, maybe 15, 20.

Q Were you being hit with any weapons or were you being struck with fists and feet?

A I don't know.

Q Were you tasered or receive any mace?

A No.

Q At the scene, where you were pulled over, sir, and when you had this further incident with the police, were you given any explanation why you were being removed from the vehicle and subject to this treatment?

A No.

Q As a result of this incident, sir, were you bleeding from any part of your body when you regained consciousness?

A My urine.

1 Hill

2 Q Had you ever seen blood in your
3 urine before this incident?

4 A No.

5 Q Just to briefly summarize, sir, you
6 were at St. Barnabas overnight till the 4th,
7 then you went back into police custody?

8 A Lockup.

9 Q Lockup and by lockup, is that Bronx
10 Central Booking, a precinct, or something else?

11 A Bronx Central Booking.

12 Q Do you ever recall being taken to a
13 precinct in connection with this arrest?

14 A No.

15 Q From that period of time you were in
16 Central Booking and you returned to St.
17 Barnabas on the 5th --

18 A Right.

19 Q And did you return from St. Barnabas
20 to Central Booking?

21 A Yes.

22 Q Did you receive any treatment while
23 you were in Central Booking?

24 A Yes.

25 Q What was done for you in Central

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Booking?

A I was asked what was wrong with me.
They go through medical.

Q Other than just generally going
through medical, did they provide you with any
other treatment at that time?

A No.

Q Approximately what time were you
released on the 5th?

A I don't remember what time it was.

Q Was it in the evening?

A Yes.

Q Before being released, did you have
to appear before a judge?

A Yes.

Q At the time you appeared before a
judge, were you represented by an attorney?

A Yes.

Q Was that a Legal Aid attorney,
personal attorney, or something else?

A Personal.

Q What was the name of the attorney
who appeared with you?

A David Druckman.

1 Hill

2 Q Did you learn that you were being
3 charged with any particular crimes at that
4 time?

5 A Yes.

6 Q Specifically, sir, to the extent you
7 know, what were you being charged with?

8 A Driving while intoxicated. Driving
9 with a suspended license.

10 Q Were you subject to any other
11 charges?

12 A Traffic and the motor vehicles.

13 Q What type of traffic or motor
14 vehicle violations were you charged with?

15 A Making an illegal left turn for
16 traffic and chemical test refusal for motor
17 vehicles.

18 Q Immediately prior to this incident,
19 sir, did you have a valid New York State
20 driver's license?

21 A No.

22 Q At that time was your licensed
23 suspended?

24 A No.

25 Q Did you have a license from another

Hill

1

2 state?

3 A Yes.

4 Q Where was your license from?

5 A Massachusetts.

6 Q Was it an active license or had it
7 expired?

8 A Active. Valid.

9 Q Sir, can you recall, at the scene of
10 this incident with the police, that you were
11 accused of driving while intoxicated?

12 A No.

13 Q Just to be clear, sir, had you
14 consumed any alcohol or illegal drugs in the
15 day preceding the incident?

16 A No.

17 Q Were you ever offered the
18 opportunity to take a field sobriety test at
19 the scene of this incident?

20 A No.

21 Q Sir, do you recall, preceding this
22 incident, making a left turn onto Tremont?

23 A I made a left turn?

24 Q You did not make any left turn?

25 A No.

1 Hill

2 Q In order to get onto Tremont from
3 Crotona, did you have to make a left turn?

4 A Yes.

5 Q How long were you on West Tremont
6 for from the time you turned onto Crotona?

7 A A mile, mile and a half.

8 Q How long of a period of time was
9 that, approximately?

10 A Ten minutes, fifteen minutes.

11 Q At that time, did you plead not
12 guilty?

13 A To what?

14 Q To the charges against you?

15 A Yes, to all charges.

16 Q What is the status of these charges?
17 Are they still pending or something else?

18 A Motor vehicle hearing refusal test
19 has been dismissed. The left turn ticket is
20 still pending due to city and officers not
21 ready to proceed and the criminal case is still
22 pending due to the same reason. They keep
23 saying they are not ready to proceed.

24 Q Just to summarize that, sir, the
25 left turn ticket is still active?

1 Hill

2 A Correct.

3 Q And the driving while intoxicated
4 charge is still active?

5 A Correct.

6 Q The driving with a suspended license
7 charge, is that still active?

8 A Correct.

9 Q The refusal to take a breathalyzer,
10 that was dismissed?

11 A Correct.

12 Q What is the current status of your
13 driver's license? Is it suspended? Is it
14 something else?

15 A It's valid.

16 Q Was it suspended for any period of
17 time following this arrest?

18 A No.

19 Q Had you ever previously pled guilty
20 or were convicted of any criminal offenses?

21 A No.

22 Q Were you on any form of probation or
23 parole at the time of this incident?

24 A No.

25 Q The prior incident that gave rise to

1 Hill

2 your other claim against the city, have those
3 criminal charges been dismissed or are they
4 pending?

5 A Dismissed.

6 Q How many times, sir, have you had to
7 appear concerning either the DMV charges or the
8 criminal charges?

9 MR. GORMAN: Are you speaking with
10 respect to this incident?

11 Q Just with respect to this incident?

12 A I don't understand the question.

13 Q How many times have you had to
14 appear in court?

15 A Criminal court, traffic court?

16 Q Both?

17 A Eight times.

18 Q Criminal, is that together or for
19 each?

20 A Criminal is one court. Traffic is
21 one court. Motor vehicle hearing is a
22 different court.

23 Q I will ask you then all three
24 questions. How many times have you had to
25 appear in Criminal Court, sir?

1 Hill

2 A Four times.

3 Q When is your next scheduled
4 appearance?

5 A Monday.

6 Q Is it scheduled for trial at that
7 point, to your knowledge?

8 A I am not sure. It's adjourned.

9 Q Sir, Traffic Court?

10 A It was adjourned to November --
11 sometime in November. I am not sure of the
12 correct date, for the fourth time.

13 Q At that point, that's just the left
14 turn case?

15 A Correct.

16 Q The DMV, sir, I guess you appeared
17 for that once?

18 A I appeared three times.

19 Q And the DMV one is the refusal to
20 take a breathalyzer?

21 A Correct.

22 Q And that has been dismissed?

23 A Correct.

24 Q Did you receive any documentation
25 concerning the dismissal?

1 Hill

2 A I am still waiting for it in the
3 mail. They said I would receive confirmation
4 in the mail.

5 Q When was the DMV matter dismissed?

6 A September 22nd -- Administrative Law
7 Judge.

8 Q Did you have to give any testimony
9 at a proceeding?

10 A Yes.

11 Q Did any police give any testimony at
12 a proceeding?

13 A No police attended neither hearing
14 dates. None of the hearing dates. They never
15 come.

16 Q Do you know the names of any of the
17 police involved in this incident?

18 A I know Jessica Figueroa and I am not
19 sure.

20 Q If I said Anthony Donato, would that
21 refresh your memory?

22 A Sounds like her partner.

23 Q Do you know if the man who
24 originally took you out of your vehicle, if
25 that was Donato?

1 Hill

2 A Correct.

3 Q How did you learn those names? From
4 your attorney?

5 A From the paperwork during the
6 hearings.

7 Q And other than that time you
8 testified at the DMV proceeding, have you
9 testified at the Traffic Court or at the
10 Criminal Court in connection with these?

11 A No.

12 Q The officers that were involved in
13 this incident, were they in uniform or plain
14 clothes?

15 A Uniform.

16 MR. BLACKMAN: Counsel, will you
17 provide the Comptroller with an
18 authorization for the criminal file to the
19 extent there is one and for his medical
20 providers?

21 (Continued on next page.)

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Hill

MR. GORMAN: Sure. We take the
request under advisement and, of course,
we ask that you follow up in writing.

MR. BLACKMAN: Thank you.

(Time noted: 4:02 p.m.)

JOHN HILL

Subscribed and sworn to before
me this day of , 20 .

Notary Public

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C E R T I F I C A T E

I, BRITTANY SALINE, hereby certify that the 50H Hearing of JOHN HILL was held before me on the 18th day of October, 2012; that said witness was duly sworn before the commencement of testimony; that the testimony was taken stenographically by myself and then transcribed by myself; that the party was represented by counsel as appears herein;

That the within transcript is a true record of the Deposition of said witness;

That I am not connected by blood or marriage with any of the parties; that I am not interested directly or indirectly in the outcome of this matter; that I am not in the employ of any of the counsel.

IN WITNESS WHEREOF, I have hereunto set my hand this day of , 20 .

BRITTANY SALINE

AFFIRMATION OF SERVICE

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

The undersigned, an attorney admitted to practice in the courts of New York State, shows: that she is employed in the office of the Corporation Counsel of the City of New York, and affirms this statement to be true under the penalties of perjury, pursuant to Rule 2106 CPLR:

That on the __ day of August, 2013, she served the annexed **NOTICE OF MOTION, SUPPORTING AFFIRMATION AND EXHIBITS, AND REQUEST FOR JUDICIAL INTERVENTION** upon:

Thomas E. Gorman, Esq.
Attorney for Plaintiff
244 Westchester Ave., Suite 410
White Plains, NY 10604

being the address within the State theretofore designated by him/her for that purpose, by causing to be deposited a copy of the same, enclosed in a prepaid wrapper in a post office box situated at 100 Church Street in the Borough of Manhattan, City of New York, regularly maintained by the Government of the United States in said City.

Dated: New York, New York
August __, 2013

CHRISTINE LIMBACH

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOHN HILL,

Plaintiff,

- against -

THE CITY OF NEW YORK, POLICE OFFICER
JESSICA FIGUEROA, POLICE OFFICER ANTHONY
DONATO, and POLICE OFFICERS JOHN DOE #1-6
(IDENTITIES PRESENTLY UNKNOWN), individually
and in their Official Capacity,

Defendants.

**NOTICE OF MOTION AND AFFIRMATION IN
SUPPORT WITH EXHIBITS**

MICHAEL A. CARDOZO

*Corporation Counsel of the City of New York
Attorney for Defendant City of New York
100 Church Street, 3rd Floor
New York, New York 10007*

*Of Counsel: Christine Limbach
Tel: (212) 356-3576*

Due and timely service is hereby admitted.

....., N.Y., 2013. .

..... Esq.

Attorney for

D



MICHAEL A. CARDOZO
Corporation Counsel

**The City of New York
LAW DEPARTMENT**
100 CHURCH STREET
NEW YORK, NEW YORK 10007

July 15, 2013

JOHN HILL
by mailing a copy to his/her/their attorney(s),
LAW OFFICE OF THOMAS E. GORMAN
at 244 WESTCHESTER AVE., SUITE 410
WHITE PLAINS, NY 10604-2919

Re: JOHN HILL v. THE CITY OF NEW YORK, POLICE OFFICER JESSICA
FIGUEROA, POLICE OFFICER ANTHONY DONATO, AND POLICE
OFFICER JOHN DOE #1-6, (IDENTITIES PRESENTLY UNKNOWN),
INDIVIDUALLY AND IN THEIR OFFICIAL CAPACITY
Law Dept. 2013-030898 Bronx County Index # 021851/2013E

Dear Sirs:

This office does not consent to the Filing By Electronic Means (NYSCEF) for this
action.

Sincerely yours,

A handwritten signature in cursive script that reads "Cathy J. Neustein".

Assistant Corporation Counsel
CATHY J. NEUSTEIN



MICHAEL A. CARDOZO
Corporation Counsel

The City of New York
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NEW YORK 10007

Dear Counsel:

If you would like to have this case considered for possible early settlement by the Early Intervention Unit of the Tort Division, the following items (as applicable) should be forwarded to the attention of Ms. Diane Studdard, New York City Law Department, Tort Division, 100 Church Street, New York, New York 10007:

IN ALL CASES COPIES OF THE FOLLOWING ITEMS MUST BE PROVIDED:

1. Notice of Claim.
2. 50-h transcript.
3. Verified Complaint and Answer.
4. Aided Card, if prepared.
5. UF18 - City Involved Accident Report, if prepared.
6. All medical and hospital records, including ambulance call report, first treatment, emergency room record, operative and radiology reports, treating physician(s) reports, physical therapy records, etc.
7. Photographs (duplicates, color or laser copies preferred) of the location and of injuries, if scarring is claimed.
8. Proof of any special damages claimed.
9. Any other item(s) that you believe pertinent to an early resolution of your case.
10. Social Security number and any other Medicare information – see attached notice

ALLEGED TRIP AND FALL ON A SIDEWALK OR ROADWAY

1. Most recently dated Big Apple map.
2. Permits, cut forms, contracts, if available.
3. Any other documents that the plaintiff will rely upon to prove prior written notice, if not a Big Apple Map.

MOTOR VEHICLE ACCIDENT CASES

1. Police Accident Report.
2. MV-104 filed by or on behalf of the plaintiff.
3. Agency incident/accident report, if prepared.
4. DMV hearing transcript, if available.
5. Photographs of the vehicle, before and after the accident.
6. Available insurance coverage for the vehicle involved in the accident.
7. Plaintiff's No-fault records.
8. Repair bills and/or estimates.

9. If the accident involves a traffic light or stop sign, any documentation that the plaintiff will rely upon to prove notice.

ALLEGED PREMISES LIABILITY

1. Copies of any documents that plaintiff will rely on to establish ownership of the premises.
2. Prior complaints.
3. Accident/incident reports.

BOARD/DEPARTMENT OF EDUCATION CASES

1. Accident and/or incident report and attachments, if any.
2. Custodian reports.
3. Teacher(s) statements/reports.
4. Witness statements.
5. Copies of any documents filed with or against any governmental agency concerning the incident.

ALLEGED POLICE MISCONDUCT

1. Any police reports in your possession.
2. Arrest report and photographs.
3. Certified copy of the disposition of any criminal proceedings.
4. Witness statements.
5. Complaint report and any follow-up reports.
6. If entitlement to reimbursement of legal fees is claimed, copies of any bills incurred.

ALLEGED PROPERTY DAMAGE

1. Photographs (duplicates, color or laser copies preferred) depicting the items alleged to have been damaged, prior and subsequent to the damage.
2. Original purchase receipts, cancelled checks, and/or charge slips for the items alleged to have been damaged.
3. Appraisals, warranties, etc.
4. Copies of any insurance agreements pertaining to property damages and/or loss.

Please be advised that all of the above materials must be sent in order to have your case considered for possible early settlement - incomplete packages cannot be considered. Within two to three months after receipt of the above materials, you will be contacted to discuss the case further. ***Counsel appearing at the conference must have settlement authority and be prepared to establish liability and damages.*** If you have any questions regarding this procedure, you may contact Ms. Diane Studdard at (212) 356-3283.

Very truly yours,

Diane Studdard



The City of New York
LAW DEPARTMENT
Office of the Corporation Counsel
Tort Division

MICHAEL A. CARDOZO
Corporation Counsel

Medicare Compliance and Recovery Unit
100 Church Street, 4th Floor
New York, NY 10007-2668

Christina White
Assistant Corporation
Counsel
(212) 788-0464
cwhite@law.nyc.gov

July 15, 2013

LAW OFFICE OF THOMAS E. GORMAN
244 WESTCHESTER AVE., SUITE 410
WHITE PLAINS, NY 10604-2919

Case Name: JOHN HILL v. THE CITY OF
NEW YORK, POLICE OFFICER JESSICA
FIGUEROA, POLICE OFFICER ANTHONY
DONATO, AND POLICE OFFICER JOHN DOE
#1-6, (IDENTITIES PRESENTLY UNKNOWN),
INDIVIDUALLY AND IN THEIR OFFICIAL
CAPACITY

Index: 021851/2013E
Law Department No: 2013-030898

Dear Counselor:

It is important that you provide us with certain personal identifying information about each plaintiff, that we need in order to identify whether each of your clients is a Medicare beneficiary, via an electronic query to the Center for Medicare and Medicaid Services (CMS). Specifically, we need each plaintiff's date of birth and Social Security number or Health Insurance Claim Number (HICN), also known as the Medicare number.

Although this disclosure is voluntary, federal law mandates that self-insured liability entities, such as the City of New York, report settlements with Medicare recipients to CMS and ensure that Medicare's financial interests in obtaining reimbursement from plaintiffs are fully protected. There is a \$1,000-per-day penalty assessed against any insurer who fails to report a settlement to Medicare and the insurer is obligated to ascertain whether a plaintiff is, in fact, a Medicare recipient. To conclusively determine whether your client is a Medicare beneficiary, your client's name, gender, date of birth, and social security number must be submitted to CMS's automatic query system. See Section 111 of the Medicare & Medicaid SCHIP Extension Act of 2007, 42 U.S.C. §1395y. Thus, courts have held that plaintiff's production of his or her Social Security Number is required. Smith v. Sound Breeze of Groton Condo. Assoc., 2011 Conn. Super. LEXIS 194 (Conn. Super. Ct. February 3, 2011); Hackley v. Garofano, 2010 Conn. Super LEXIS

1669 (Conn. Super. Ct. July 1, 2010). *See also*, Seger v. Tank Connection, LLC, 2010 U.S. Dist LEXIS 49013 (D. Neb. June 1, 2010) ("Collection of the SSNs for the purposes of coordinating benefits with Medicare is a required, legitimate and necessary use of the SSN under federal law and is thus permitted by HIPAA").

If you know for a fact that your client presently receives Medicare, your firm must immediately (1) notify Medicare of the pending lawsuit; (2) provide the Law Department with plaintiff's Medicare identification number and/or social security number; (3) obtain conditional and final payment information from Medicare; (4) if future medical care is anticipated, determine the amount to be set aside by plaintiff for payment of future medical costs; and (5) provide copies of any correspondence you have received from Medicare.

Please note that, as plaintiff's counsel, you also have obligations and liabilities under federal law in the event your client is or may become a Medicare recipient. Medicare may be entitled to reimbursement out of any settlement proceeds for any payments it has made for treatment of these injuries, and may have a claim directly against you for unreimbursed sums.

Where the Government is obliged to pay for the medical care of a person who is injured "under circumstances creating tort liability upon some third person . . . to pay damages therefore," the Government has the right to recover the reasonable value of the care it provides. *See* The Medical Care Recovery Act ("MCRA"), 42 U.S.C. § 2651. 3. Medicare may make "conditional payment" for medical care and then recover the payments made or "reasonably expected to be made" from any of the following: Group health plans, workers compensation programs, liability insurers, self-insurers, plaintiffs, plaintiffs' attorneys, and medical providers. *See* Medicare Secondary Payer Act 42 U.S.C. §1395y(b). Pursuant to the Medicare Secondary Payer Act, plaintiff's counsel and the City of New York have a duty to comply with reporting and/or recovery provisions, and Federal law imposes potential liability against plaintiff's counsel and the City of New York for non-compliance. *See* 42 CFR 411.37; 42 CFR 411.24(c); 411.26(a)-(b). A failure to take Medicare's interests into consideration can result in double damages or a loss of plaintiff's Medicare benefits. An insurer's failure to report any settlement results in a \$1,000-a-day fine to the insurer.

The right of a defendant to withhold payment pending plaintiff's resolution of any potential Medicare claims or liens is firmly established. Years ago, the Appellate Division, Second Department held, in Liss v. Brigham Park Coop. Apts, 264 A.D.2d 717 (2d Dep't 1999), that a plaintiff's general release and stipulation of settlement are defective if tendered without a release of plaintiff's Medicare lien. Specifically, the Court noted that, because the Federal government has a right of action directly against the defendant for recovery of its lien, it was "incumbent upon plaintiff to resolve the lien and give the defendant a release." 264 A.D.2d at 718.

Recently, in Torres v. Hirsch Park, LLC, 91 AD.3d 942 (2nd Dep't 2012), the Court reaffirmed this principle. The Second Department stated: "The general release and stipulation of settlement tendered by plaintiff were defective because they failed to include any provisions releasing and holding the defendant harmless from potential Medicare and Medicaid liens or acknowledging that any such liens would be satisfied from the settlement proceeds." (Citations omitted). The Court also recognized the burden that the defendant faced regarding compliance with federal law, observing that the plaintiff must provide information "necessary for the defendant to comply with its statutory duty to report the identity of a claimant who is entitled to Medicare benefits (see 42 USC 1395y[b][8]) and to determine the existence of potential subrogation claims [under federal law]." *Id.* at 943 (citations omitted).

Echoing the Second Department's rationale, in Panella v. CBS Broadcasting, Inc., 2011 N.Y. Misc. LEXIS 4271. (Sup. Ct. N.Y. Cty. September 1, 2011), the Supreme Court held that, for purposes of payment, CPLR 5003-a "does not become operative until a duly executed release is tendered by the settling plaintiff to the settling defendant, and an unpaid lien renders a general release not 'duly executed.'" Id. at *6. The Panella court cited Liss as governing precedent for this holding. The Court further concluded that the settling defendant "should not be penalized for failing to disburse settlement funds within twenty-one days of the...release, when it had spent months trying to get information from the plaintiffs as to any Medicare liens they may have against them. [The settling defendant] was taking the steps necessary to protect itself from liability for any potential failure by the plaintiffs to pay outstanding Medicare liens..." Id. at *7. Indeed, the Court did not consider the action "settled within the purview of CPLR 5003-a(a) until the Medicare issues were resolved by the CMS letter." Id.

Other jurisdictions have similarly held that a settling defendant has a legitimate right to protect itself from liability to Medicare and is thus acting in good faith by requiring a settling plaintiff, who is a Medicare recipient, to provide proof as to the existence or non-existence of a Medicare claim or lien. See, e.g., Wilson v. State Farm Mutual Automobile Ins. Co., 795 F.Supp.2d 604, at 607-608 (W.D. Ky. 2011) (defendant insurer "had sound reasons to try to determine the amount of [the lien] and protect itself from overpayment" and that, given the statutory obligations to Medicare, "that to comply with federal law and protect its own legitimate interests against overpayment [of the plaintiff] is reasonable and certainly is not in bad faith").

Please note it is possible that, in certain cases, a Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. §1395y (b) and 42 C.F.R. §§411.22 through 411.26.

Accordingly, if your client is a Medicare recipient, your firm should immediately notify Medicare of this pending lawsuit and seek information on conditional payments (including anticipated future payments) for which Medicare will expect reimbursement. Information and Contact instructions for Coordination of Benefits (COBC) can be found at www.cms.gov/ or by phone: 800-999-1118. In addition, plaintiff can access his/her Medicare benefits at www.mymedicare.gov. Additional information can be found on the Medicare Secondary Payer Recovery Contractor's (MSPRC) website at www.msprc.info/.

Please further note that, as of September 30, 2011, the MSPRC has added a Self-Service Information feature to its customer service line (1-866-677-7220) that gives callers the ability to get the most up-to-date Demand and Conditional Payment amounts as well as the dates those letters were issued without having to speak with a Customer Service Representative.

PLEASE BE ADVISED THAT WE CANNOT FINALIZE ANY SETTLEMENT WITH A CURRENT MEDICARE RECIPIENT WITHOUT FIRST RESOLVING MEDICARE'S CLAIM.



MICHAEL A. CARDOZO
Corporation Counsel

**The City of New York
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NEW YORK 10007**

July 15, 2013

LAW OFFICE OF THOMAS E. GORMAN
244 WESTCHESTER AVE., SUITE 410
WHITE PLAINS, NY 10604-2919

Re: JOHN HILL
County: Bronx Ct. Index No.: 021851/2013E
Our File No.: 2013-030898

Dear Counselors:

This office is unable to evaluate and review your client's claims against THE CITY OF NEW YORK, ("CITY") without duly executed authorizations permitting the CITY to review records pertaining to your client's arrest, incarceration, and or criminal proceedings. A review of the file in the above named action reveals that you have yet to provide said authorizations. In order to facilitate the discovery process, please provide this office with the following:

- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy the records, transcripts and certificates of disposition of any criminal proceedings concerning the claims alleged in the complaint;
- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy all records, created by, or in the possession of, the New York City Police Department, relating to the claims alleged in the complaint; and
- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy all records, created by, or in the possession of, the District Attorney's Office, relating to the claims alleged in the complaint.

Enclosed is a blank authorizations for your convenience. Please copy and have your client complete a separate original authorization for the New York City Police Department, District Attorney's Office, and the unsealing of related criminal court records and return them to the New York City Law Department, 100 Church Street, New York, NY 10007 at your earliest convenience. NOTE: - For cases with more than one plaintiff please copy the blank authorization supplied herewith and return a separate set of completed authorizations *for each plaintiff* alleging other than only loss of consortium claims. Thank you for your anticipated cooperation.

Very truly yours,

MICHAEL A. CARDOZO
Corporation Counsel

**CONSENT AND AUTHORIZATION FOR RELEASE OF RECORDS SEALED BY
LAW, INCLUDING RECORDS SEALED PURSUANT TO CRIMINAL PROCEDURE
LAW § 160.50**

Whereas, I, _____, residing at _____, date of birth: _____, and Social Security # _____, NYSID # _____, having caused a notice of claim to be filed or commencing an action/lawsuit against THE CITY OF NEW YORK, demanding money damages for false arrest, false imprisonment, malicious prosecution, assault and battery, and/or other allegations, I hereby waive my statutory rights, for purposes of this claim/action/lawsuit, to keep sealed the records of my arrest on or about March 3, 2012 and prosecution, including all records maintained by law enforcement agencies, criminal courts, and/or district attorney's office. If my case proceeded in the criminal courts, the docket # was _____.

Whereas, it is necessary for the above named defendant(s) to have access to the aforementioned records of my arrest and any related criminal proceedings and incarceration in order to evaluate and review my claims, and prepare its defense thereto, I hereby authorize any and all governmental agencies, bodies and employees having custody of such records to release such records to the Office of the Comptroller or the Office of the Corporation Counsel of the City of New York, or its authorized agent or employee. I specifically authorize the New York City Police Department; Bronx County District Attorney's Office; New York State Supreme Court, Bronx County, Criminal Term; and New York City Criminal Court to disclose any and all records in their possession relating to the aforementioned arrest/prosecution and docket number to the Office of the Corporation Counsel of the City of New York, or its authorized agent or employee.

Plaintiff/Claimant

Sworn to before me this _____ day of _____, 20____

NOTARY PUBLIC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
JOHN HILL,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JESSICA FIGUEROA, POLICE OFFICER ANTHONY
DONATO, AND POLICE OFFICER JOHN DOE #1-6,
(IDENTITIES PRESENTLY UNKNOWN),
INDIVIDUALLY AND IN THEIR OFFICIAL
CAPACITY,

Defendant(s).
-----x

ANSWER

Index #: 021851/2013E

Law Dept. #: 2013-030898

Defendant THE CITY OF NEW YORK, by MICHAEL A. CARDOZO,
Corporation Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 11, 13-15, 18, 22-26, 28-32, 34-37, 39-42, 44-46, 48-50, 52-54, 56-62, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to the truth of the allegations set forth in paragraph(s) 1, 4-6, 12, 16, 17, 19-21, inclusive.
3. Deny the allegations set forth in paragraph(s) 7-10, inclusive, except that a notice of a claim was presented, that more than thirty days have elapsed without adjustment thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, inclusive, except that the City of New York is a municipal corporation and maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 27, 33, 38, 43, 47, 51, 55, inclusive, except as otherwise pleaded herein.

AFFIRMATIVE DEFENSE(S)

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. The defendant(s) are not subject to the jurisdiction of this court, in that the summons does not bear the date it was filed with the clerk of the court.

12. The action on behalf of the plaintiff(s) is barred by reason of the fact that it was not commenced within the time provided by the Statute of Limitations.

13. Plaintiff(s)' complaint fails to comply with section 3017(c) of the CPLR.

WHEREFORE, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

MICHAEL A. CARDOZO
Corporation Counsel
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOHN HILL,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, POLICE OFFICER JESSICA FIGUEROA,
POLICE OFFICER ANTHONY DONATO, AND POLICE OFFICER JOHN
DOE #1-6, (IDENTITIES PRESENTLY UNKNOWN), INDIVIDUALLY AND
IN THEIR OFFICIAL CAPACITY,

Defendant(s).

**COMBINED DEMAND FOR
BILL OF PARTICULARS & DISCOVERY**

MICHAEL A. CARDOZO

Corporation Counsel

Attorney for Defendant THE CITY OF NEW YORK, 100 Church Street
New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)
(212) 356-2680/2683

All Other Matters (by county of venue)
(718) 590-3487 (EBT's-3971) (Bronx)
(718) 222-2000 (EBT's-2069) (Kings)
(212) 788-0646 (EBT's-0628) (New York)
(718) 206-4731 (EBT's (718) 206-4703) (Queens)
(718) 447-5983 (EBT's-5985) (Richmond)
(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #:

2013-030898

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
JOHN HILL,

Plaintiff(s),

**COMBINED DEMAND FOR
VERIFIED BILL OF
PARTICULARS & DISCOVERY**

-against-

THE CITY OF NEW YORK, POLICE OFFICER JESSICA
FIGUEROA, POLICE OFFICER ANTHONY DONATO, AND
POLICE OFFICER JOHN DOE #1-6, (IDENTITIES
PRESENTLY UNKNOWN), INDIVIDUALLY AND IN
THEIR OFFICIAL CAPACITY,

Defendant(s).
----- x

DEMAND FOR VERIFIED BILL OF PARTICULARS

PLEASE TAKE NOTICE that pursuant to CPLR 3041, plaintiff(s) is required within 30 days following service of this demand to serve upon MICHAEL A. CARDOZO, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. The exact date and time of the act or occurrence.
2. The specific location of the act or occurrence with reference to addresses, landmarks, or other identifying points of reference, including the direction and distance therefrom. If the occurrence took place inside a premise, state specifically the location within the premise and also include the block and lot of the premises.
3. State the injuries claimed, if any.
4. State those injuries claimed to be permanent.
5. If applicable, set forth the length of time it is alleged the plaintiff(s) was confined to:
 - (a) Hospital(s);
 - (b) Bed;
 - (c) House.
6. If applicable, set forth the amount claimed as special damages for:
 - (a) Physician(s) services;
 - (b) Nurses services;
 - (c) Hospital expenses;
 - (d) Drugs and medical supplies;
 - (e) X-rays and diagnostic tests.

For each of the foregoing elements of damages please state the name and address(es) of the provider(s) and the dates of treatment. If any of the foregoing elements of damages have been repaid to the plaintiff(s) or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff(s).

7. If applicable, please state the total amount of all other special damages not specified in items above; and please state the

- (a) name and address of each service provider;
- (b) each date of the service;
- (c) amount of the expense for each provider;
- (d) amount of any expense paid by a third-party (including any payment made to reimburse plaintiff);
- (e) name and address of the third-party paying any expense; and
- (f) amount of any unreimbursed expense paid by plaintiff(s) personally to each provider.

8. Please state the occupation of plaintiff(s) at the time of the incident; and please state the:

- (a) name and address of any employer for 5 years prior to alleged incident and up to the time of trial;
- (b) length of time totally disabled from work;
- (c) length of time partially disabled from work;
- (d) amount claimed for lost earnings, if any;
 - i. if a loss of earnings claim is alleged, please state the yearly gross earnings for each year during 5 years prior to alleged incident and up to the time of trial; and
- (e) number of days absent from work as a result of injuries sustained from the incident.

9. Please state the (a) name and address of any school attended by plaintiff(s) for 5 years prior to alleged incident and up to the time of trial; and (b) the number of days lost from school as a result of injuries sustained from incident.

10. Please state the home address of plaintiff(s) for a period of 5 years prior to the alleged incident to the present.

11. Please state any other name used by plaintiff(s) and the time period when the name was used.

12. Please state the date of birth and social security number of plaintiff(s) (social security number optional).

13. Please state whether plaintiff(s) is (are) Medicare recipient(s). If plaintiff is or was a Medicare recipient please provide their Medicare identification number.

14. If plaintiff(s) has ever been convicted of a crime (including any guilty plea), please state (a) the NYSID number of plaintiff; (b) the dates of every conviction; (c) whether the conviction was state or federal; and (d) the county where each conviction occurred.

15. If the complaint alleges loss of services, set forth the pecuniary loss, if any, alleged in the complaint. Enumerate the damages for:

- (a) Loss of services;
- (b) Consortium;
- (c) Other expenses.

16. State those injuries arising from the use or operation of a motor vehicle which are claimed to be serious, as defined in Insurance Law § 5102 (d), if any.

17. If property damage is claimed, please state (a) all property damaged; (b) the fair market value of each item at the time it was damaged; (c) the cost of repairing each item; (d) the cost of replacing each item; (e) the date each item was acquired; (f) the purchase cost of each item; (g) the amount(s) provided by a third-party to reimburse damage; (h) the name and address of any third-party which reimbursed damage; and (i) amount of any unreimbursed payment made by plaintiff(s) to replace or repair a damaged item.

18. State the manner in which it is claimed the accident occurred.

19. State separately the acts or omissions constituting the alleged negligence of each of the answering defendant(s), if any.

20. State separately the acts of each of the answering defendant(s) constituting the intentional wrongs claimed, if any.

21. State the names of the employee(s) or agents of the answering defendant(s) who are alleged to have committed the acts set forth in the items above.

22. Describe any alleged dangerous and defective condition and or the object or instrumentality complained of, as well as the nature of the condition alleged.

23. State whether any repairs were made prior to the happening of the alleged accident.

24. If it is alleged that repairs were made prior to the happening of the accident, state when, where, and by whom, the repairs were made.

25. State whether actual or constructive notice is claimed or whether it is alleged that defendant created the condition complained of.

26. If actual notice is claimed, then set forth the following:

(a) The names of the employees, agents and/or servants of the defendant(s) to whom it will be alleged said actual notice was given;

(b) By whom will it be claimed that said actual notice was given on each occasion aforesaid;

(c) The date or dates of each said notice;

(d) The place said actual notice was given.

27. If constructive notice is claimed, state the length of time said condition is alleged to have existed prior to the happening of the alleged occurrence.

28. If prior written notice is claimed, specify the nature of such notice.

29. If prior written notice is claimed, then set forth the following:

(a) The name(s) of the entity, agency, employees, agents and/or servants of the defendant(s) to whom it will be alleged said prior written notice was given;

(b) By whom will it be claimed that said prior written notice was given on each occasion aforesaid;

(c) The date or dates of each said notice;

(d) The place said notice was given.

30. In any action where plaintiff(s) claim the violation of any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes, ordinances, rules or regulations alleged to have been violated by the answering defendant(s).

31. If applicable, describe in what respects defendant(s) failed to provide plaintiff(s) with a safe place to work.

32. If applicable, state whether plaintiff(s) will allege that this defendant(s) was a party to a contract. If yes;

(a) State the parties to the contract;

(b) State the contract number.

33. If applicable, set forth each and every item of construction, excavation or demolition work which the plaintiff(s) will allege was not so constructed, shored, equipped, guarded, arranged, operated and conducted as to provide reasonable and adequate safety; setting forth the manner in which the construction, shoring, equipping, guarding, arranging, operating and/or conducting of the construction, excavating, or demolition work is alleged to have caused the plaintiff(s) alleged injury.

34. If applicable, state whether the plaintiff(s) will allege that this defendant(s) exercised control over the work being performed at the job site. If yes, state the nature and extent of the control allegedly exercised and the exact manner in which said control was exercised.

35. If applicable, state those injuries claimed to be "grave", as defined in the Workers' Compensation Law § 11.

ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges defamation, the following items are additionally demanded:

36. Whether the alleged defamatory statement was communicated orally or in a writing.
37. With respect to each of the answering defendant(s), the particular words complained of and allegedly communicated.
38. The name(s) and address(es) of any person(s) it is alleged heard or received the defamatory statement(s).
39. If it is alleged that the defamatory statement(s) were communicated in a writing, set forth the date(s), nature, and content of the writing.
40. If it is alleged that any defamatory statement was published, set forth the date(s), nature and name of the media or publication and each republication of the alleged defamatory statement.
41. The circumstances, acts, and/or omissions which evince defendant(s) knowledge of the falsity, or reckless disregard of the truth, or malice, with respect to the statement(s) allegedly made.

ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges police misconduct, the following items are additionally demanded:

42. Please state the criminal court file and docket number of the criminal proceeding.
43. Please state the (a) the specific charges; (b) the disposition of each charge; and (c) the date of said disposition.
44. Please state the date and time taken into custody.
45. Please state the date of arraignment.
46. Please state the date and time released from incarceration.
47. Please state the name, address, and phone number of attorney(s) who represented plaintiff(s) in the criminal proceedings.
48. Please state the amount claimed for legal fees, if any.
49. Please state the NYSID number of plaintiff(s).
50. For each criminal proceeding, including arraignment, please state the (a) the type of proceeding; (b) the date(s) of the proceeding; (c) the name of reporter who transcribed the proceeding; and (d) the name of Judge who presided over the proceeding.

ALLEGED EXPOSURE TO LEAD-BASED PAINT

Where applicable, in addition to the foregoing, if plaintiff(s) allege damages as a result of exposure to lead-based paint, the following items are additionally demanded:

51. The day, month, and year of initial exposure;
52. The day, month and year when exposure terminated;
53. The address(es), including apartment numbers, of every premises where it is alleged that plaintiff(s) were exposed to lead-based paint;
54. The highest recorded blood lead level for plaintiff(s) and the date of the diagnosis;
55. The date of the initial diagnosis;
56. Whether it is claimed that plaintiff(s) sustained any cognitive injuries or learning disabilities as a result of any alleged exposure and if so, state the nature of the disability, when any such disability was diagnosed, the school and current grade level of plaintiff(s) and whether plaintiff(s) have been placed in any special classes.

ALLEGED ACTION FOR WRONGFUL DEATH

Where applicable, in addition to the foregoing, if plaintiff(s) allege wrongful death, the following items are additionally demanded:

57. Please state the amount claimed as pecuniary loss, specifying the loss of parental guidance by each person dependant upon support of the decedent.

58. State the names, addresses, ages, and relationships to the decedent of all persons to whose support it is claimed the decedent contributed.

59. State the nature and purpose of the support contributed as to each person supported, including how and when support was given.

60. State the date, place and cause of death.

61. State the length of time the decedent remained conscious of the injuries sustained.

62. State the total amounts claimed as special damages for:

(a) Funeral and burial expenses;

(b) Administration expenses;

(c) Any other damages claimed.

DEMAND FOR DISCOVERY & INSPECTION

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand you are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

GENERAL DEMANDS

1. If the City of New York is a named defendant, please identify the agency(s) involved.

2. For each person you believe may have been a witness to the incident which caused an injury, state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.

3. For each person you believe may have been a witness to the condition which allegedly caused an injury, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.

4. For each person you believe may be a witness to an injury alleged in this lawsuit, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.

5. For each expert witness whom you expect to call at trial, please state the (a) name of the expert; (b) business address of the expert; (c) qualifications of the expert; (d) curriculum vitae of the expert; (e) subject matter in reasonable detail that the expert is expected to testify; (f) substance of the facts and opinions on which each expert is expected to testify; and (g) a summary of the grounds for each opinion.

6. If any sum has been paid or promised to plaintiff(s) by any person claimed to be liable (within the meaning of § 15-108, General Obligations Law) for any of the injuries (or damages) alleged in the complaint, please set forth the name(s) and address(es) of the person(s), corporation(s), insurance

company(s), or other entity(s) making such payment or promise and state the amount(s) which have been, or will be, with reasonable certainty received by plaintiff(s).

7. For each person you believe may have provided an oral or written statement about the incident, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.

8. Please furnish a copy of each document you believe may have been prepared by the answering defendant(s) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation, including any statement made by any person identified in response to Item 6 above, and any note, memorandum or recording of any oral statement.

9. Please furnish the sum and substance of any unrecorded oral statement you believe may have been given by each defendant (or employee, or former employee, of a defendant) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation.

10. Please provide a copy of any (a) any insurance claim arising out of the incident alleged in this lawsuit; (b) any workers' compensation claim arising out of the incident alleged in this lawsuit; (c) any pension claim arising out of the incident alleged in this lawsuit; (d) any no-fault claim arising out of the incident alleged in this lawsuit; and (e) any other claim seeking redress for the incident alleged in the lawsuit.

11. Please furnish a copy of any Freedom of Information Law request made to the answering defendant(s) and any response thereto, which you intend to use for any purpose in this litigation.

12. Please furnish copies of any subpoenas served on any party, or any other individual or entity concerning this litigation.

13. Please provide a copy of any transcript of testimony involving the incident alleged in the lawsuit (including (but not limited to) any transcript related to a Department of Motor Vehicle hearing, departmental hearing, and criminal proceeding).

14. Please provide a signed copy of any hearing held pursuant to General Municipal Law § 50-h.

15. Please furnish a copy of each accident report, if any, made by, or on behalf of your client(s) concerning the occurrence of the injuries (or damages) alleged in the complaint.

16. Please furnish a copy of any written notice, Big Apple Corporation map or other document giving notice of an allegedly defective or dangerous condition at the place where the injuries (or damages) alleged in the complaint occurred, prior to the occurrence thereof.

17. Please furnish a reasonably clear copy of each photograph and or each video depicting the place where the injuries (or damages) alleged in the complaint occurred.

18. If plaintiff intends on utilizing any physical evidence at trial, please (a) provide a photograph of the physical evidence; and (b) make the physical evidence available for inspection.

19. In any action for injuries, including death, allegedly sustained by a spouse, child or other family member of a plaintiff, please furnish a copy of each marriage, birth and death certificate, as applicable.

20. In any representative action, please furnish a copy of the court order appointing the representative.

21. With respect to any earnings (or profits) claimed to have been lost as a result of the injuries (or damages) alleged in the complaint, please furnish a copy of each state and each federal income tax return including any W-2 statements, together with attachments, filed by, or on behalf of, plaintiff(s) for the year in which the said injuries (or damages) occurred and for each of the two preceding years, and for all years in which continuing losses are claimed.

22. In any action for wrongful death, please furnish a copy of the federal estate tax return filed for decedent's estate, and a copy of each state and each federal income tax return, including W-2 statements, filed by, or on behalf of the decedent for each of the two years before death.

23. Please furnish a copy of each medical provider's report and medical bills, including pharmaceutical bills and bills for durable medical goods, with ICD-codes, referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **after** the occurrence of the injuries alleged in the complaint, or any treatment reasonably related thereto.

24. Please furnish a copy of each medical provider's report referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **before** the occurrence of the injuries alleged in the complaint and reasonably related thereto.

25. Please provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to (a) obtain each document referring to any treatment of plaintiff(s) (including psychological treatment) for any injury alleged in this lawsuit; and (b) speak with any medical provider which provided any treatment to plaintiff(s). This demand includes treatment which is reasonably related to any injury alleged in this lawsuit. Please utilize form located New York State Unified Court System webpage located at www.nycourts.gov.

26. In any action by or on behalf of a student, please furnish duly executed authorizations permitting the Office of the Corporation Counsel to examine and copy the school, attendance and health records of the plaintiff(s) on file at the school(s) attended at the time of the occurrence and thereafter.

27. If plaintiff received workers' compensation benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the workers' compensation file; and (b) a copy of the worker's compensation file.

28. If plaintiff received no fault benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the no fault file; (b) a copy of the no fault file.

29. If plaintiff alleges economic loss, please provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records on file at the last employer.

30. State whether plaintiff is currently receiving, has applied for or is eligible for Social Security Disability payments. If plaintiff is currently receiving Social Security Disability payments, please identify when eligibility began and identify his/her SSDI number and the medical condition on which basis coverage was awarded. If plaintiff has received Social Security Disability payments at any point in the past, please identify the period or periods of time when plaintiff was eligible and identify his/her SSDI number and medical condition on which basis coverage was awarded.

31. If, in your response to the prior request, you indicated plaintiff has ever applied for or been eligible for Social Security Disability payments, please provide (a) copies of all social security disability records, including any determination and decision; and (b) a duly executed authorization (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain Social Security disability records from the Social Security Administration.

32. Identify all health care benefits, including but not limited to private health insurance carriers and public health care programs (e.g., Medicaid), plaintiff has received or which plaintiff will become eligible to receive as a result of injuries allegedly related to the subject accident/incident and provide copies of plaintiff's identification cards for all identified health care programs.

33. State whether plaintiff is or has ever been a Medicare recipient and, if so, provide plaintiff's Medicare Health Insurance Claim Number ("HICN") and a copy of his/her HICN card. If no card is available, please provide the date eligibility began. If plaintiff has received Medicare coverage at some point in the past and no HICN card is available, please identify the period or periods of time when plaintiff was eligible.

34. Please furnish the name and address of the attorney(s) who have appeared in this action.

35. Please furnish the names of the parties, the court, and the index number of each other action, if any, commenced by or on behalf of plaintiff(s) concerning any of the injuries (or damages) alleged in the complaint.

DEMANDS FOR COLLATERAL SOURCE INFORMATION

36. Entities that have provided payments for medical treatment. Identify by name, address and policy number, any source that has provided payments to plaintiff, or to plaintiff's spouse, domestic partner, or parent for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

37. Entities that have provided payments on account of disability. Identify by name, address and policy number, any source that has provided payments to plaintiff, by reason of plaintiff's partial or total inability to work. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

38. Entities from which plaintiff is eligible to receive medical coverage. Identify by name, address and policy number, any source from which plaintiff is eligible to receive medical coverage for the injuries received in this accident whether or not plaintiff has actually applied for such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

39. Entities from which plaintiff is eligible to receive disability benefits. Identify any source by name, address and policy number, any source from which plaintiff would be eligible to receive payments in the event of plaintiff's partial or total inability to work, whether or not plaintiff has applied for or received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

40. Entities to which plaintiff has applied for medical benefits. Identify any source by name, address and policy number, any source to which plaintiff, or plaintiff's spouse, domestic partner, or parent, has submitted claims or applied for benefits for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident whether or not such benefits were received. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

41. Entities to which an application for disability benefits has been made. Identify any source by name, address and policy number, any entity to which an application has been made for payments by reason of partial or total inability to work, whether or not plaintiff has received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

42. Entities to which plaintiff has paid premiums to obtain medical or disability coverage. Identify any entity by name, address and policy number to which plaintiff, or plaintiff's spouse, domestic partner, or parent paid premiums to obtain medical or disability coverage for two years prior to the incident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for proof of such payment of premiums.

ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) allege police misconduct, the following items are additionally demanded:

43. Please provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records pertaining to all criminal proceedings related to the incident alleged in this lawsuit. Please provide a separate authorization for each entity which maintains these records (including (but not limited to) the Office of the District Attorney, the New York City Police Department, and criminal court).

44. Please provide copies of records pertaining to all criminal proceedings related to the incident alleged in the lawsuit, including (but not limited to) transcripts, certificates of disposition, police records, criminal records, District Attorney records, and photographs, including copies of any photographs of the plaintiff(s) taken by the defendant(s) at the time of the arrest.

45. If entitlement to reimbursement for legal fees is claimed, please provide copies of any bills incurred.

46. Please provide the name, address, and phone number of any attorney representing plaintiff(s) concerning the criminal charges related to the incident alleged in this lawsuit.

ALLEGED PROPERTY DAMAGE

Where applicable, in addition to the foregoing, if plaintiff(s) allege property damage, the following items are additionally demanded:

47. For each item of property damaged:

(a) Photograph(s) and or videotapes depicting the items alleged to have been damaged, prior to damage;

(b) Photograph(s) and or videotapes depicting items alleged to have been damaged, subsequent to damage;

(c) Original purchase receipts, cancelled checks, and/or charge slips for items alleged to have been damaged;

(d) Appraisals, warranties, etc. pertaining to the items alleged to have been damaged.

48. True and accurate copies of any and all insurance agreements held by plaintiff on day of said incident and pertaining to property damage and/or loss.

49. True and accurate copies of any and all notices of loss or claims made on the above policies pertaining to the damage alleged in the complaint.

ALLEGED NEGLIGENT SUPERVISION

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent supervision, the following items are additionally demanded:

50. For every individual who allegedly failed to provide adequate supervision, please state (a) the name of the individual; (b) the address and phone number of the individual; (c) the name of the entity who employs the individual; (d) the title of the individual; (e) the date that the individual failed to provide adequate supervision; and (f) the time that the individual failed to provide adequate supervision. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each individual. This demand includes all individuals, even if employed by any of the parties.

51. Please identify the name or names of the person(s) it is alleged received inadequate supervision.

52. Please provide the name(s) of any person(s) plaintiff will claim assaulted him/her with reference to the claim being asserted against the answering defendant(s).

53. If the person(s) identified in above have not yet appeared in this action, please provide copies of all documents, including but not limited to, affidavits of service and correspondence, which reflect any attempt to obtain jurisdiction over the individual(s).

54. Please provide copies of any documents filed with or against any governmental agency(s) concerning the actions of any person(s) whom plaintiff(s) alleges caused the damages alleged in the complaint, including any criminal complaints filed and the disposition thereof.

55. For each individual you believe may have provided an oral or written statement concerning the supervision of any person involved in the incident, state (a) the name of any individual who provided a statement; and (b) the address and phone number of any individual who provided a statement. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have provided a statement. This demand includes all individuals, even if employed by any of the parties.

ALLEGED PREMISES LIABILITY

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) failed to properly maintain a premises, the following items are additionally demanded:

56. If it is alleged that the answering defendant owned the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) ownership of the premises.

57. If it is alleged that the answering defendant(s) leased the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) tenancy.

58. Please provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

59. Please provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

MOTOR VEHICLE ACCIDENTS

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

60. Please provide a copy of the title for the vehicle being operated by plaintiff.

61. Please provide a copy of plaintiff's drivers license.

62. Please provide a copy of the registration for the vehicle in which plaintiff(s) was located when the incident occurred.

63. Please provide a copy of any (a) repair record (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident; and (b) maintenance records (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident.

64. Please provide a copy of any recall notice received regarding the vehicle in which plaintiff(s) was located when the incident occurred.

65. Please provide photographs taken of the vehicle(s) involved in the accident taken:

(a) Before the accident;

(b) After the accident.

66. Please provide any estimates to repair the vehicle involved in this accident.

67. Please provide any records or receipts for towing of the vehicle involved in this accident.

68. Please provide a copy of the MV-104 filed by, or on behalf of, the plaintiff as a result of this accident.

69. Please provide a copy of any accident report provided to any insurance company regarding this accident.

70. Please provide any notes or memorandum describing this accident.

71. Please provide a copy of any transcript of any Department of Motor Vehicle hearing taken with respect to this accident.

72. Please provide the date, location, name of defendant or respondent, and name of Judicial Hearing Officer who presided over, any Department of Motor Vehicle hearing taken with respect to this accident.

73. Please provide a copy of any insurance policy (including any umbrella or excess policy) covering the vehicle in which plaintiff(s) was located at the time of the incident.

74. Please provide a copy of the no-fault file pertaining to plaintiff(s).

ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) defamed plaintiff(s), the following items are additionally demanded:

75. Please provide a copy of any writing, publication (including any re-publications), and broadcast containing the alleged defamatory statement(s).

76. Please provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate the untruthfulness of the alleged defamatory statement(s).

77. Please provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate defendant(s) malice or reckless disregard for the truth.

78. Please provide the name of any individual who you believe has information concerning the untruthfulness of the alleged defamatory statement(s) or whether the statements were made with malice or reckless disregard for the truth, stating (a) the name of the individual(s); and (b) the address and phone number of the individuals. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person. This demand includes all individuals, even if employed by any of the parties.

79. Please provide copies of any documents, bills, invoices or writings which plaintiff(s) intend to use to prove any alleged special damages.

ALLEGED LEAD-BASED PAINT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges injuries as a result of exposure to lead-based paint, the following items are additionally demanded:

80. Please provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain birth and prenatal records of plaintiff(s); the authorization must include the name and address of the hospital or facility where plaintiff(s) was born and the date of birth of plaintiff(s).

81. Please provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of any medical provider who provided prenatal care; the authorization must include the name and addresses of each medical provider and the dates of treatment.

82. Please provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of all (a) health providers who have rendered pediatric care (including treatment for any of the injuries currently alleged) to plaintiff(s); and (b) health care providers that screened blood of plaintiff(s). The authorizations must contain the name and address of each medical provider as well as the dates of treatment or testing.

83. Please provide duly executed authorizations enabling defendant(s) to obtain the records of any and all schools, and/or day care centers attended by the plaintiff(s) to date; the authorizations must include the name(s) and address(es) of the schools and the dates of attendance.

84. Please provide the name and address of the academic institution most recently attended by the infant plaintiff's natural mother and a duly executed authorization allowing that institution to release its records to the defendant(s). If the infant plaintiff's mother is not the custodial parent, please provide the same information with respect to any adult acting as the infant plaintiff's guardian or caretaker.

85. If the infant plaintiff has any siblings, please provide the following for each such sibling:
(a) Name, date of birth and current address;
(b) Names and addresses of any and all schools, pre-schools or day-care centers attended, and duly executed authorizations allowing those institutions to release their records to the defendant(s).

86. For each infant plaintiff, provide the name, date of birth and last known address of the biological father.

87. Please provide copies of any photographs, movies, or videotapes depicting the premises.

88. Please provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

89. Please provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S))

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand, all other parties (excluding plaintiff(s)) are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

GENERAL DEMANDS TO PARTIES (EXCLUDING PLAINTIFF(S))

1. Please provide copies of complete contents of insurance policies in effect on the date of occurrence, including all endorsements, terms, and conditions, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.

2. Please provide copies of all excess and umbrella insurance policies in effect on date of occurrence, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.

3. Please provide copies of all certificates of insurance in effect on the date of occurrence, including but not limited to, any which name this defendant, or any of its agencies, as an insured or as an additionally insured.

4. Copies of all contracts, sub-contracts, leases, franchises, and indemnification agreements in effect on date of occurrence.

5. Please provide copies of any documents, records or photographs relating to any repairs made to the location, premises or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.

6. Please provide copies of any documents, records or logs relating to any maintenance (including cleaning, altering, and shoveling) performed at, or to, the location, premises, or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.

7. Copies of all accident reports kept in the regular course of business regarding the occurrence complained of in plaintiff's complaint.

8. Please provide a copy of plaintiff(s) Bill of Particulars and any discovery items previously exchanged, (including but not limited to; deposition transcripts and reports of physical examinations conducted of the plaintiff), and served upon or by defendant(s) or third-party defendant(s).

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING ALLEGED ROADWAY, SIDEWALK, AND CONSTRUCTION ACCIDENTS

Where applicable, in addition to the foregoing, in any action alleging defective roadway, sidewalk, or construction, the following items are additionally demanded:

9. Please provide copies of all applications for permits, cut forms, opening tickets, work tickets, and paving orders.

10. Please provide copies of all drawings, schematics, blueprints, strip maps, diagrams of underground facilities and of street hardware, including manhole covers, castings, and gratings.

11. Please provide copies of all daily, weekly, and/or monthly progress reports, job progress photographs, and photographs of roadway color coding for entire period of construction.

12. Please provide copies of all maintenance, inspection and repair records for the entire period of construction.

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING MOTOR VEHICLE ACCIDENTS

Where applicable, in addition to the foregoing, in any action in which it is alleged that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

13. Please provide a copy of the title for any vehicle involved in the incident.
14. Please provide a copy of the driver's license for the applicable driver involved in the incident.
15. Please provide a copy of the registration for the applicable vehicle involved in the incident.
16. Please provide the following records for the applicable vehicle involved in the incident for a two-year period prior to the alleged incident: (a) repair records (including logs, bills, and receipts); and (b) maintenance records (including logs, bills, and receipts).
17. Please provide a copy of any recall notice received regarding any vehicle involved in the incident.
18. Please provide photographs of the vehicle involved in the accident taken:
 - (a) before the accident;
 - (b) after the accident.
19. Please provide any estimates to repair the vehicle involved in this accident.
20. Please provide any records or receipts for towing of the vehicle involved in this accident.
21. Please provide a copy of any MV-104 related to the incident.
22. Please provide a copy of any Department of Motor Vehicle hearing related to the incident; and provide (a) the date, location, name of the parties, and name of Judicial Hearing Officer who presided over any Department of Motor Vehicle hearing.
23. Please provide a copy of any accident report provided to any insurance company regarding this accident.
24. Please provide any notes or memorandum describing this accident.
25. Please provide a copy of any insurance policy, including any umbrella or excess policies, covering the vehicle defendant or third-party plaintiff was operating at the time of this accident.
26. Please provide a copy of any no-fault file pertaining to plaintiff(s) related to the incident.

ADDITIONAL DEMANDS TO ANY THIRD-PARTY PLAINTIFF WHO HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand, any third party-plaintiff who has an action against a party represented by the Corporation Counsel, it is requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

27. Please provide a copy of any document (with all attachments) previously exchanged by the parties (including pleadings, bills of particulars, deposition transcripts, medical records, correspondence, motions, discovery responses, etc.).

28. Please provide a copy of all court orders and stipulations issued in the litigation.

**DEMAND FOR VERIFIED BILL OF PARTICULARS TO ANY THIRD-PARTY PLAINTIFF WHO
HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

PLEASE TAKE NOTICE that pursuant to CPLR 3041, any third party-plaintiff who has an action against a party represented by the Corporation Counsel is required within 30 days following service of this demand to serve upon MICHAEL A. CARDOZO, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. Please state separately the alleged negligence of any party represented by the Corporation Counsel, if applicable.

2. Please state separately the alleged intentional wrongs committed by any party represented by the Corporation Counsel, if applicable.

3. Please state the name of any employee or agent of any party represented by the Corporation Counsel alleged to have committed any act which contributed to an injury.

4. Please state (a) whether any repair was made to the accident location prior to the happening of the alleged accident; (b) when any repair was made; (c) where any repair was made; (d) who made any repair; and (e) what repairs were made.

5. Please state (a) whether any party represented by the Corporation Counsel had notice of an alleged defective condition which contributed to an injury; (b) which party had notice; (c) whether the party had actual notice of a condition; (d) whether the party had constructive notice of a condition; and (e) whether it is alleged that the party created the condition.

6. If actual notice is claimed, please state (a) the name of any individual(s) who had actual notice; (b) the job title of any individual(s) who had actual notice; (c) the employer of any individual(s) who had actual notice; and (d) the address and phone number of any individual(s) who had actual notice. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have had actual notice. This demand includes all individuals, even if employed by any of the parties.

7. If constructive notice of a condition is claimed, please state the alleged condition and the length of time said condition is alleged to have existed prior to the happening of the alleged incident.

8. If third-party plaintiff(s) claims the violation of any statute, ordinance, rule, order, regulation, or directive, please state separately all such statutes, ordinances, rules, regulations, and directives alleged to have been violated by any party represented by the Corporation Counsel.

9. If applicable, please state whether any party represented by the Corporation Counsel was a party to a contract; and please state the:

- (c) parties to the contract;
- (d) contract number.

10. If applicable, please state any item of construction, excavation, and demolition work which was not so constructed, shored, equipped, guarded, arranged, operated, and conducted as to provide reasonable and adequate safety; and please state (a) the manner in which the work caused an alleged injury; and (b) if applicable, the control exercised by any party represented by the Corporation Counsel and the exact manner in which said control was exercised.

Dated: New York, New York
July ____, 2013

Yours, etc.
MICHAEL A. CARDOZO
Corporation Counsel
Attorney for Defendant THE CITY OF NEW
YORK,
100 Church Street
New York, New York 10007

TO:

LAW OFFICE OF THOMAS E. GORMAN
the attorney(s) for Plaintiff(s)
244 WESTCHESTER AVE., SUITE 410
WHITE PLAINS, NY 10604-2919

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
JOHN HILL,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE OFFICER JESSICA
FIGUEROA, POLICE OFFICER ANTHONY DONATO, AND
POLICE OFFICER JOHN DOE #1-6, (IDENTITIES
PRESENTLY UNKNOWN), INDIVIDUALLY AND IN
THEIR OFFICIAL CAPACITY,

Defendant(s).

NOTICE OF DEPOSITION

Index #: 021851/2013E

Law Dept. #: 2013-030898

----- x
PLEASE TAKE NOTICE, that pursuant to Article 31 of the Civil Practice Law and Rules,
the undersigned will take by deposition the testimony of all adverse parties at a time and date to be mutually
agreed upon at the pre-calendar conference.

PLEASE TAKE FURTHER NOTICE, that at the time of the taking of the testimony the
said adverse parties shall produce all books and papers in their possession relating to the issues upon which
said parties are to be examined and upon your failure to so produce them, parol and/or secondary evidence
thereof and of the contents of the same will be required.

Yours, etc.
MICHAEL A. CARDOZO
Corporation Counsel
Attorney for Defendant THE CITY OF NEW
YORK,
100 Church Street
New York, New York 10007

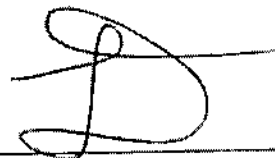
TO:
LAW OFFICE OF THOMAS E. GORMAN
the attorney(s) for Plaintiff(s)
244 WESTCHESTER AVE., SUITE 410
WHITE PLAINS, NY 10604-2919

VERIFICATION

Re: JOHN HILL; LD #: 2013-030898

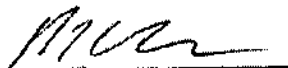
LENA ALLEN-MOORE being duly sworn deposes and says that: deponent is an employee of the Office of the Corporation Counsel; that deponent has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to deponent's own knowledge, except as to the matters alleged upon information and belief, which deponent believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof.

Dated: New York, New York
July 16, 2013



LENA ALLEN-MOORE

Sworn to before me this
16 day of July, 2013


NOTARY PUBLIC
MILlicent NICHOLAS
Commissioner of Deeds
City of New York No. 4-7071
Certificate Filed in New York County
Commission Expires April 1, 2012 5

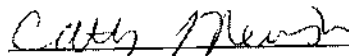
STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars and discovery.

Dated: New York, New York
July 15, 2013

By:



CATHY J. NEUSTEIN
Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

Please do not send correspondence to the above named individual unless otherwise directed. See Answer back for additional contact information.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOHN HILL,

Plaintiff(s),

AFFIDAVIT OF SERVICE

-against-

THE CITY OF NEW YORK, POLICE OFFICER JESSICA
FIGUEROA, POLICE OFFICER ANTHONY DONATO, AND
POLICE OFFICER JOHN DOE #1-6, (IDENTITIES
PRESENTLY UNKNOWN), INDIVIDUALLY AND IN
THEIR OFFICIAL CAPACITY,

Defendant(s).

Index #: 021851/2013E

Law Dept. #: 2013-030898

STATE OF NEW YORK)
: ss.:
COUNTY OF NEW YORK)

Dmitry Aronov, being duly sworn deposes and says that:

1. The deponent is not a party to the action and is 18 years of age or older.
2. On July 16, 2013, the deponent served the annexed ANSWER AND

DEMANDS upon the following person or persons:

JOHN HILL
by mailing a copy to his/her/their attorney(s),
LAW OFFICE OF THOMAS E. GORMAN
at 244 WESTCHESTER AVE., SUITE 410
WHITE PLAINS, NY 10604-2919

being the address designated by said attorney(s) for that purpose by depositing the same in a first class,
postpaid, properly addressed wrapper, in a post office or official depository under the exclusive care and
custody of the United States Postal Service within the State of New York pursuant to CPLR 2103(b)(2).

Sworn to before me this

10th day of July, 2013

Rabih M. AlShafei

Rabih M. AlShafei
Notary Public, State of New York
No. 01AL6203080
Qualified in Kings County
Commission Expires March 30, 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOHN HILL,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, POLICE OFFICER JESSICA FIGUEROA,
POLICE OFFICER ANTHONY DONATO, AND POLICE OFFICER
JOHN DOE #1-6, (IDENTITIES PRESENTLY UNKNOWN),
INDIVIDUALLY AND IN THEIR OFFICIAL CAPACITY,

Defendant(s).

ANSWER AND DEMANDS

MICHAEL A. CARDOZO
Corporation Counsel
Attorney for Defendant THE CITY OF NEW YORK,
100 Church Street
New York, New York 10007
Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)
(212) 356-2680/2683
All Other Matters (by county of venue)
(718) 590-3487 (EBT's-3971) (Bronx)
(718) 222-2000 (EBT's-2069) (Kings)
(212) 788-0646 (EBT's-0628) (New York)
(718) 206-4731 (EBT's (718) 206-4703) (Queens)
(718) 447-5983 (EBT's-5985) (Richmond)
(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #: **2013-030898**

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

E



THE CITY OF NEW YORK
LAW DEPARTMENT

MICHAEL A. CARDOZO
Corporation Counsel

BRONX TORT
100 CHURCH STREET, 3RD FLOOR
NEW YORK, NY 10007

Christine Limbach
phone: (212) 356-3576
fax: (212) 356-2059
email: climbach@law.nyc.gov

July 26, 2013

VIA FIRST CLASS MAIL
Bronx County Clerks Office
851 Grand Concourse
Bronx, New York 10451

Re: John Hill v. City of New York, et al.
Index # 021851/13E (Bronx County Supreme Court)
City File # 2013-030898

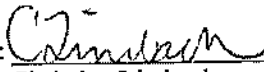
Dear Sir/Madam:

The above case was filed with the Bronx Supreme Court using the "E-File" system. However, at no time did the Defendants, The City of New York, Police Officer Jessica Figueroa, and Police Officer Anthony Donato, consent to this form of filing. Accordingly, please reverse the "E-filing" of this claim and enter it with the Bronx County Clerks Office.

Thank you for your attention to this matter.

Sincerely yours,

MICHAEL A. CARDOZO
Corporation Counsel

By: 
Christine Limbach
Assistant Corporation Counsel

COUNTY OF Bronx

Plaintiff/Petitioner,

- against -

Defendant/Respondent.

(This Form Must be Annexed to Hard Copy Submissions in E-Filed Cases)

1. Consensual Cases

2. Mandatory Cases

3. Consensual or Mandatory Cases

☐ I am filing an exhibit that cannot be e-filed (Rule 202.5-b(d)(6)).

131 Church St. 3rd Floor (Address)

(Signature)

New York, NY 10007

Christine Limbach

(Name)

212-356-3576

(Phone)

New York City Law Department

(Firm Name)

climbach@law.nyc.gov

(E-Mail)



THE CITY OF NEW YORK
LAW DEPARTMENT

100 CHURCH STREET
NEW YORK, NEW YORK 10007

MICHAEL A. CARDOZO
Corporation Counsel

Christine Limbach
phone: (212) 356-3576
fax: (212) 356-2059
email: climbach@law.nyc.gov

Date: August 15, 2013

Re: JOHN HILL,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JESSICA FIGUEROA, POLICE OFFICER ANTHONY DONATO, and POLICE OFFICERS JOHN DOE #1-6 (IDENTITIES PRESENTLY UNKNOWN), individually and in their Official Capacity,

Index No.: 21851/13

Supreme Court of the State of New York
County of BRONX
County Clerk

County Clerk:

Please file this Notice of Motion. As the City of New York is the defendant requesting this, we are exempt from payment of any applicable fees.

Sincerely,

A handwritten signature in dark ink, appearing to read "M. Cardozo", is written over a horizontal line.

MICHAEL A. CARDOZO
Corporation Counsel
Attorney for Defendant
100 Church Street, 3rd Floor
New York, New York 10007
(212) 356-3576

By: Christine Limbach, Esq.

X-Motion

EXHIBIT "A"

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SUMMONS

JOHN HILL,

X

Index No. 021851/2013E

Date Filed:

Plaintiff(s),

Plaintiff designates
Bronx County as the
place of Trial.

-against-

THE CITY OF NEW YORK,
POLICE OFFICER JESSICA FIGUEROA,
POLICE OFFICER ANTHONY DONATO, and
POLICE OFFICERS JOHN DOE #1-6, (IDENTITIES
PRESENTLY UNKNOWN), individually and in their
Official Capacity,

The basis of Venue is
Plaintiff's residence & the
place of occurrence.

Plaintiff resides at
753-Crotona Park North
Bronx, NY 10457

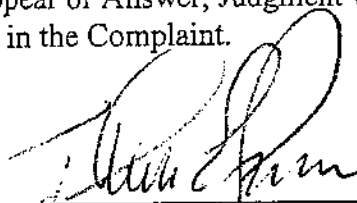
Defendant(s).

X

To Above-Named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete, if this Summons is not personally delivered to you within the State of New York, and in case of your failure to Appear or Answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: White Plains, NY
March 17, 2013



Thomas E. Gorman

Attorney for Plaintiff
244 Westchester Ave., Suite 410
White Plains, NY 10060-2919
(914) 684-1155

To: Corporation Counsel
100 Church St.
New York, NY 10007

The NYC Police Dept.
One Police Plaza, Room 140
New York, NY 10038

Jessica Figueroa
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

Anthony Donato
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

Police Officers John Doe #1-6
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOHN HILL,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER JESSICA FIGUEROA,
POLICE OFFICER ANTHONY DONATO, and
POLICE OFFICERS JOHN DOE #1-6, (IDENTITIES
PRESENTLY UNKNOWN), individually and in their
Official Capacity,

Defendant.

Index No.: 021851/2013E

Date Filed:

COMPLAINT

Plaintiff, JOHN HILL, by his attorney, THOMAS E. GORMAN, ESQ., as and for
his Complaint against the Defendants, states and alleges, upon information and belief and
at all times material hereto, as follows:

PARTIES AND JURISDICTION

1. Plaintiff, JOHN HILL, was and is an individual residing at 753 Crotona
Park North, Bronx, NY 10457;
2. Upon information and belief, at all times material hereto, Defendant, THE
CITY OF NEW YORK, was and is a municipal corporation duly
incorporated under the laws of the State of new York;
3. At all times material hereto, upon information and belief, Defendant, THE
CITY OF NEW YORK, was and is a municipal corporation duly existing
by virtue of the laws of the State of New York with the power and
authority to carry out municipal functions including maintenance and
operation of a police department (NYPD), and at all times relevant hereto
employed the Defendants POLICE OFFICER JESSICA FIGUEROA,

POLICE OFFICER ANTHONY DONATO and POLICE OFFICERS

~~JOHN DOE #1-6, as police officers;~~

4. Upon information and belief, at all times material hereto, Defendant, POLICE OFFICER JESSICA FIGUEROA, was and is a police officer employed in and by Defendant, THE CITY OF NEW YORK, and duly appointed and acting as an officer of the aforementioned police department. Defendant, POLICE OFFICER JESSICA FIGUEROA, is sued individually and in her capacity as a police officer in and with the NYPD;

5. Upon information and belief, at all times material hereto, Defendant, ANTHONY DONATO, was and is a police officer employed in and by Defendant, THE CITY OF NEW YORK, and duly appointed and acting as an officer of the aforementioned police department. Defendant, POLICE OFFICER ANTHONY DONATO, is sued individually and in his capacity as a police officer in and with the NYPD;

6. Upon information and belief, at all times material hereto, Defendants, POLICE OFFICERS JOHN DOE 1-6, inclusive, were and are police officers employed in and by Defendant, THE CITY OF NEW YORK, and duly appointed and acting as officers of the aforementioned police department but whose names are currently unknown to Plaintiff. Plaintiff will amend this Complaint to reflect the proper names of these Defendants once same become known. Defendants, POLICE OFFICERS JOHN DOE

#1-6 are sued individually and in their capacity as police officers in and with the NYPD;

7. On May 24, 2012, a written Notice of Claim on behalf of Plaintiff was served upon THE CITY OF NEW YORK, POLICE OFFICE JESSICA FIGUEROA, POLICE OFFICE ANTHONY DONATO and POLICE OFFICERS JOHN DOE #1-6 in compliance with General Municipal Law, Section 50-e. (A copy of the Notice of Claim is annexed hereto as Exhibit "A" and incorporated herein by reference.);

8. Service of the Notice of Claim was made at least thirty (30) days before the commencement of this action;
9. More than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment of that claim has not been made and has been neglected and/or refused;
10. On October 12, 2012, Plaintiff was examined pursuant to General Municipal Law, Section 50-h;
11. Defendants are subject to the jurisdiction of this Court pursuant to CPLR Section 301 and/or 302;

AS AND FOR A FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S CIVIL RIGHTS

12. On or about March 3, 2012, at approximately 8:30 – 9:00 PM, Plaintiff drove his 2006 Mercedes Benz, CLS-Class, motor vehicle to drop off a passenger at West Tremont Ave. and Davidson Ave., Bronx, New York, as the passenger lived in the area. Plaintiff had stopped and double-parked

his vehicle to let his passenger out of the car. At that time, between six to eight (6-8) New York City Police Officers, including Defendant, POLICE OFFICER JESSICA FIGUEROA and Defendant, POLICE OFFICER

ANTHONY DONATO, who were parked in a New York City Police Department van on the corner of West Tremont Ave. and Davidson Ave., opposite to where Plaintiff had stopped his vehicle, started up the van and pulled behind Plaintiff's motor vehicle. The Police van did not have it's

police lights-activated; nor had they made any attempt to pull over Plaintiff's vehicle for a traffic stop before he stopped his car;

13. Plaintiff then began to move his car to a parking space when the operator of the Police van activated the van's police lights such that Plaintiff did stop his car. At this time three to four (3-4) New York City Police Officers did exit the Police van and approach Plaintiff's car, opened the driver's-side car door and yelled at Plaintiff to step out of his car. One (1) of the New York City Police Officers then grabbed Plaintiff by his clothing about the neck and chest area and forcibly pulled Plaintiff out of the car;

14. Once Plaintiff was out of his motor vehicle he asked the New York City Police Officers why he was being stopped and why he was forcibly removed from his car. The New York City Police Officers told Plaintiff to "shut up" and the three to four (3-4) Officers began to punch, kick and beat Plaintiff about the head, chest, body and legs. Plaintiff was knocked to the ground and dragged by his legs to between two parked cars where

the beating continued until Plaintiff lost consciousness. At no time before blacking-out did the New York City Police Officers state why they had stopped Plaintiff, why they were beating him nor did they read Plaintiff his Miranda rights. At no time before commencing to beat Plaintiff did the New York City Police Officers demand that Plaintiff produce a driver's license. At no time before commencing to beat Plaintiff did the New York City Police Officers request that Plaintiff submit to a chemical test analysis of Plaintiff's breath; or actually attempt to administer such a test, nor did Plaintiff ever refuse to submit to such test;

15. Plaintiff regained consciousness in St. Barnabus Hospital, Bronx, New York some time later on March 3, 2012. Plaintiff was admitted to the hospital from 3-3-12 to 3-4-12 because of the serious nature of the injuries he sustained from being beaten by the New York City Police Officers. At no time did Plaintiff ever attempt to resist, or resist in any manner the New York City Police Officers, but tried to cooperate in all respects;
16. Plaintiff was arrested (Arrest # B12618642) and charged with allegedly having committed the violations of:

(M) V.T.L. 1192 (3) Operating a Motor Vehicle While Under the Influence of Alcohol or drug;

(M) V.T.L. 1192 (4-a) Operating a Motor Vehicle While Under the Influence of Alcohol or drug;

(V) V.T.L. 509 (1) Violations of the Vehicle and Traffic Law;

(V) V.T.L. 1192 (1) Operating a Motor Vehicle While Under the Influence of Alcohol or drug;

17. That the arresting officers are believed to be Defendants, POLICE OFFICER JESSICA FIGUEROA, Shield # 08633, POLICE OFFICER ANTHONY DONATO, Shield # 7509, and POLICE OFFICERS JOHN DOE # 1-6, inclusive;
18. That Plaintiff, JOHN HILL, was falsely accused, wrongly taken into custody, arrested, photographed, processed, questioned, arraigned, searched, imprisoned and confined by the Defendants and other unknown agents as a result of the unsupported and outrageous claims set forth above. His car was impounded allegedly for the purpose to "determine true owner," and on or about 4-4-12 he was issued a Substitute Ticket # AAR 3536396 alleging violation for disobeying traffic device;
19. That Plaintiff, JOHN HILL, was processed through the criminal justice system and subjected by Defendants and others to finger printing, photographing and placed in a cell;
20. That Plaintiff, JOHN HILL, was in police custody and confined to their custody and/or at St. Barnabus Hospital and/or to a cell and held by Defendants from March 3, 2012 until approximately noon March 5, 2012, a total time of incarceration of 33 hours;
21. That Plaintiff, JOHN HILL, was aware of his confinement and at no time did he consent to same;
22. That the New York City Police Officers refused to offer any aid or assistance for his injuries;

23. Defendants, individually, collectively and/or vicariously, by and through

~~their agents, servants and/or employees, carelessly, negligently and~~

~~recklessly hired, trained, retained and/or supervised their employees,~~

specifically the police officers of the NYPD including, but not limited to

FIGUEROA, DONATO AND JOHN DOES # 1-6, in committing an

assault and battery on Plaintiff; attacking the Plaintiff without cause or

notification; failed to properly supervise the conduct of the police officers

~~and their superiors at Defendant, THE CITY OF NEW YORK and the~~

NYPD during the course of the arrest, assault, battery, false imprisonment

and malicious prosecution of the Plaintiff; failed to stop or otherwise

prevent the excessive physical and verbal abuse of Plaintiff while he was

outside his motor vehicle; failed to provide Plaintiff with medical care;

failed to prevent the police officers from falsely imprisoning the Plaintiff;

failed to properly supervise and/or train the individual officers; failed to

review the arrest and reasons therefore; failed to prevent Plaintiff's civil

rights under the Fourth, Fifth, Eighth and Fourteenth Amendments from

being violated; failed to train superior officers at the NYPD on the proper

supervision of their charges; failed to train police officers on the use of

force and the use of excessive force; failed to train and supervise

Defendants on how to effect a lawful arrest; failed to train and supervise

Defendants on how to apprehend and/or arrest a party without causing or

doing physical or emotional harm; failed to train officers on how to

respond and assess a scene properly; failed to investigate the background

and history of candidates hired for the position of police officers; failed to terminate the employment of officers for past unprofessional and improper acts so as to reinforce the message that misconduct will not be tolerated by the police force; failed to prevent the individual Defendants from assaulting, beating, verbally and physically abusing and/or causing physical and emotional injury to Plaintiff; falsely imprisoning Plaintiff; negligently and recklessly apprehending an innocent civilian who had no nexus to any underlying investigation; and in otherwise being careless and negligent;

24. The actions of the Defendants hereto described constitute an unlawful detention of Plaintiff in violation of Plaintiff's civil rights. As a result of the conduct and actions of the Defendants, who were acting under the color of law and who used excessive force, Plaintiff was deprived of his liberty and civil rights guaranteed by the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution and comparable provisions of the New York State Constitution;
25. Plaintiff is entitled to reasonable attorneys' fees and costs;
26. By reason of the foregoing and violation of Plaintiff's civil rights and the Constitution and laws of the United States by the Defendants, Plaintiff has been damaged in the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

AS AND FOR A SECOND CAUSE OF ACTION FOR VIOLATION OF
42 U.S.C. SECTION 1983

27. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs, "1" through "26" of this Complaint with the same force and effect as if more fully set forth herein at length;

28. Defendants, individually, collectively and/or vicariously, by and through their agents, servants and/or employees, carelessly, negligently and recklessly: hired, trained, retained and/or supervised their employees, specifically the police officers of the NYPD including, but not limited to, FIGUEROA, DONATO AND JOHN DOES #1-6, in committing an assault and battery on Plaintiff; attacking the Plaintiff without cause or notification; failed to properly supervise the conduct of the police officers and their superiors at Defendant, THE CITY OF NEW YORK and its police department, the NYPD during the course of the arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff; failed to stop or otherwise prevent the excessive physical and verbal abuse of Plaintiff while he was outside of his motor vehicle; failed to provide Plaintiff with medical care; failed to prevent the police officers from falsely imprisoning the Plaintiff; failed to properly supervise and/or train the individual officers; failed to review the arrest and reasons therefore; failed to prevent Plaintiff's civil rights under the Fourth, Fifth, Eighth and Fourteenth Amendments from being violated; failed to train superior officers at the NYPD on the proper supervision of their charges; failed to train police officers on the use of force and the use of excessive force; failed to train and supervise Defendants on how to effect a lawful arrest;

failed to train and supervise Defendants on how to apprehend and/or arrest a party without causing or doing physical or emotional harm; failed to train officers on how to respond and assess a scene properly; failed to investigate the background and history of candidates hired for the position of police officers; failed to terminate the employment of officers for past unprofessional and improper acts so as to reinforce the message that misconduct will not be tolerated by the police force; failed to prevent the individual Defendants from assaulting, beating, verbally and physically abusing, and/or causing physical and emotional injury to Plaintiff; falsely imprisoning Plaintiff; negligently and recklessly apprehending an innocent civilian who had no nexus to any underlying investigation; and in otherwise being careless and negligent;

29. At the time of the incident, Defendants and NYPD had rules, regulations and/or practices in effect regarding the use of force and/or excessive force during the course of an arrest, regardless of an alleged suspect's potential threat to the safety of the officers. Defendant, THE CITY OF NEW YORK and its police force, NYPD, allowed untrained officers to effectuate arrests and did not provide proper training;
30. The actions of the Defendants hereto described constitute an unlawful detention of Plaintiff in violation of Plaintiff's civil rights. As a result of the conduct and actions of the Defendants, who were acting under the color of law and who used excessive force, Plaintiff was deprived of his

liberty and civil rights guaranteed by the Civil Rights Act of 1871 and 42

U.S.C. Section 1983 and comparable provisions of New York State Law;

31. Pursuant to 42 U.S.C. Section 1988, Plaintiff is entitled to reasonable

attorneys' fees and costs;

32. By reason of the foregoing and violation of Plaintiff's civil rights and the laws of the United States by the Defendants, Plaintiff has been damaged in

the sum, including punitive damages, of Three Million Dollars

(\$3,000,000.00);

AS AND FOR A THIRD CAUSE OF ACTION FOR VIOLATION OF 42 U.S.C.
SECTION 1981

33. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" of this Complaint with the same force and effect as if more fully set forth herein at length;

34. Defendants, individually, collectively and/or vicariously, by and through their agents, servants and/or employees, carelessly, negligently and recklessly: hired, trained, retained and/or supervised their employees, specifically the police officers of the NYPD including, but not limited to FIGUEORA, DONATO AND JOHN DOES #1-6, in committing an assault and battery on Plaintiff; attacking the Plaintiff without cause or notification; failed to properly supervise the conduct of the police officers and their superiors in Defendant THE CITY OF NEW YORK and its police department, the NYPD, during the course of the arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff;

failed to stop or otherwise prevent the excessive physical and verbal abuse of Plaintiff while he was outside his motor vehicle; failed to provide Plaintiff with medical care; failed to prevent the police officers from falsely imprisoning the Plaintiff; failed to properly supervise and/or train the individual officers; failed to review the arrest and reasons therefore; failed to prevent Plaintiff's civil rights under the Fourth, Fifth, Eighth and Fourteenth Amendments from being violated; failed to train superior officers at the NYPD, on the proper supervision of their charges; failed to train police officers on the use of force and the use of excessive force; failed to train and supervise Defendants on how to effect a lawful arrest; failed to train and supervise Defendants on how to apprehend and/or arrest a party without causing or doing physical or emotional harm; failed to train officers on how to respond and assess a scene properly; failed to investigate the background and history of candidates hired for the position of police officers; failed to terminate the employment of officers for past unprofessional and improper acts so as to reinforce the message that misconduct will not be tolerated by the police force; failed to prevent the individual Defendants from assaulting, beating, verbally and physically abusing, and/or causing physical and emotional injury to Plaintiff; falsely imprisoning Plaintiff; negligently and recklessly apprehending an innocent civilian who had no nexus to any underlying investigation; and in otherwise being careless and negligent;

35. The actions of the Defendants hereto described constitute an unlawful detention of Plaintiff in violation of Plaintiff's civil rights. As a result of the conduct and actions of the Defendant, who were acting under the color of law and who used excessive force, Plaintiff was deprived of his liberty and civil rights guaranteed by the Civil Rights Act of 1871 and 42 U.S.C. Section 1981 and comparable provisions of New York State Law;

36. Pursuant to 42 U.S.C. Section 1988, Plaintiff is entitled to reasonable attorneys' fees and costs;

37. By reason of the foregoing and violation of Plaintiff's civil rights and laws of the United States by the Defendants, Plaintiff has been damaged in the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

AS AND FOR A FOURTH CAUSE OF ACTION FOR ASSAULT

38. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" of this Complaint with the same force and effect as if more fully set forth herein at length;

39. At all times material hereto, upon information and belief, Defendant FIGUEORA, DONATO AND JOHN DOE #1-6 knowingly, intentionally and negligently assaulted Plaintiff with a dangerous weapon, at the aforementioned date, time and place;

40. Defendant FIGUEROA, DONATO AND JOHN DOE # 1-6 acted in violation of, among other things, the New York State Penal Law Sections: 120.10, 120.05 and 120.00;

41. As a result of the foregoing and statutory violations, Plaintiff sustained severe and permanent personal injuries;

42. As a result of the foregoing willful, wanton, intentional, grossly negligent and reckless conduct and criminal conduct, Plaintiff has been damaged, including punitive damages; in a sum of Three Million Dollars (\$3,000,000.00);

AS AND FOR A FIFTH CAUSE OF ACTION FOR BATTERY

43. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" and "38" through "42" of this Complaint with the same force and effect as if more fully set forth herein at length;

44. At all times material hereto, upon information and belief, Defendant FIGUEORA, DONATO AND JOHN DOE # 1-6 committed harmful and offensive contact to Plaintiff's person with a dangerous weapon, at the aforementioned date, time and place;

45. As a result of the foregoing and statutory violations, Plaintiff sustained severe and permanent personal injuries;

46. As a result of the foregoing willful, wanton, intentional, grossly negligent and reckless conduct and criminal conduct, Plaintiff has been damaged,

including punitive damages, in a sum of Three Million Dollars
(\$3,000,000.00);

AS AND FOR A SIXTH CAUSE OF ACTION FOR FALSE IMPRISONMENT

47. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" and "38" through "42" and "43" through "46" of this Complaint with the same force and effect as if more fully set forth herein at length;

48. Based on the actions of the Defendants, Plaintiff, JOHN HILL, was unlawfully restrained and confined in a bounded area by Defendants. Plaintiff was unable to escape because of the threats of and the attack by Defendants;

49. As such, Plaintiff, JOHN HILL, was falsely imprisoned by the Defendants;

50. As a result of the foregoing willful, wanton, intentional, grossly negligent and reckless conduct and criminal conduct, Plaintiff has been damaged, including punitive damages, in a sum of Three Million Dollars (\$3,000,000.00);

AS AND FOR A SEVENTH CAUSE OF ACTION FOR NEGLIGENCE

51. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" and "38" through "42" and "43" through "46" and "47"

through "50" of this Complaint with the same force and effect as if more fully set forth herein at length;

52. Defendants, individually, collectively and/or vicariously, by and through

their agents, servants and/or employees, carelessly, negligently and recklessly: hired, trained, retained and/or supervised their employees, specifically the police officer of the NYPD including, but not limited to,

FIGUEORA, DONATO AND JOHN DOES #1-6, in committing an assault and battery on Plaintiff; assaulting Plaintiff with a deadly weapon, attacking the Plaintiff without cause or notification; failed to properly supervise the conduct of the police officers and their superiors during the course of the arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff; failed to stop or otherwise prevent the excessive physical and verbal abuse of Plaintiff while he was outside of his motor vehicle; failed to provide Plaintiff with medical care; failed to prevent the police officers from falsely imprisoning the Plaintiff; failed to properly supervise and/or train the individual officers; failed to review the arrest and reasons therefore; failed to prevent Plaintiff's civil rights under the Fourth, Fifth, Eighth and Fourteenth Amendments from being violated; failed to train superior officers at the NYPD on the proper supervision of their charges; failed to train police officers on the use of force and the use of excessive force; failed to train and supervise Defendants on how to effect a lawful arrest; failed to train and supervise Defendants on how to apprehend and/or arrest a party without causing or

doing physical or emotional harm; failed to train officers on how to respond and assess a scene properly; failed to investigate the background and history of candidates hired for the position of police officers; failed to terminate the employment of officers for past unprofessional and improper acts so as to reinforce the message that misconduct will not be tolerated by the police force; failed to prevent the individual Defendants from assaulting, beating, verbally and physically abusing, and/or causing physical and emotional injury to plaintiff; falsely imprisoning Plaintiff; negligently and recklessly apprehending an innocent civilian who had no nexus to any underlying investigation; and in otherwise being careless and negligent;

53. As a result of the foregoing, Plaintiff, JOHN HILL, was caused to suffer serious and permanent personal injuries; he became sick, sore, lame and disabled; was confined to home and bed; caused to sustain a loss of enjoyment of life; has incurred and in the future will incur expenses for the treatment of his injuries; became obligated to expend monies for physicians' services and other medical care and treatment and had required and in the future will require additional medical care and treatment as a result of the personal injuries, all to his damage;
54. By reason of the foregoing and negligence, gross negligence, carelessness and recklessness by the Defendants, Plaintiff has been damaged in the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
NEGLIGENT HIREING AND SUPERVISION

55. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "26" and "27" through "32" and "33" through "37" and "38" through "42" and "43" through "46" and "47" through "50" and "51" through "54" of this Complaint with the same force and effect as if more fully set forth herein at length;
56. Defendant, THE CITY OF NEW YORK, prior to hiring Defendants, FIGUEROA, DONATO and JOHN DOES # 1-6, failed to investigate the qualifications, competency, capacity, abilities and capabilities of Defendants;
57. Had Defendant, THE CITY OF NEW YORK, investigated the qualifications, competency, capacity, abilities and capabilities of Defendants, FIGUEORA, DONATO and JOHN DOES # 1-6, employment of Defendants would not, or should not, have been granted;
58. Defendant, THE CITY OF NEW YORK, its agents, servants and/or employees failed to adequately train, monitor, supervise, test, inspect and examine FIGUEORA, DONATO and JOHN DOES # 1-6's performance of their duties;
59. Upon information and belief, Defendant, THE CITY OF NEW YORK, through their agents, servants and/or employees had actual and/or constructive notice of Defendants' deficiencies, but took no action despite the notice;

60. The injuries sustained by Plaintiff, JOHN HILL, were caused in whole, or in part, by the negligence of Defendant, THE CITY OF NEW YORK, its agents, servants and/or employees in that Defendants were negligent in, among other things, hiring, training, supervising, instructing, staffing and monitoring Defendants, FIGUEORA, DONATO and JOHN DOES # 1-6; in failing to provide adequate personnel; in failing to staff sufficient and adequate personnel to monitor, supervise and insure the safety of the people; in failing to monitor the performance of agents, servants, laborers and/or employees, including, but not limited to Defendants, FIGUEORA, DONATO and JOHN DOES # 1-6; in failing to replace Defendants, FIGUEORA, DONATO and JOHN DOES # 1-6 after notice of their inability to perform their duties satisfactorily; and in otherwise being careless and negligent;

61. Had Defendant, THE CITY OF NEW YORK, made the above-stated inquiry, or in the alternative, had said Defendant reviewed and analyzed the information obtained in a proper manner, privileges and/or employment would not have been granted and/or renewed;

62. As a result of the negligent hiring and retention of the Defendants, Plaintiff has been damaged in a sum, including punitive damages, of Three Million Dollars (\$3,000,000.00);

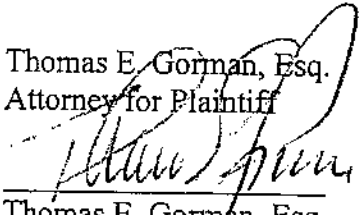
WHEREFORE, Plaintiff, JOHN HILL, demands judgment as follows:

- a. A judgment against Defendants for the sum, including punitive damages of Three Million Dollars (\$3,000,000.00) on the First Cause of Action;

- b. A judgment against Defendants for the sum, including punitive damages of Three Million Dollars (\$3,000,000.00) on the Second Cause of Action;
- c. A judgment against Defendants for the sum, including punitive damages of Three Million Dollars (\$3,000,000.00) on the Third Cause of Action;
- d. A judgment against Defendants for the sum, including punitive damages of Three Million Dollars (\$3,000,000.00) on the Fourth Cause of Action;
- e. A judgment against Defendants for the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00) on the Fifth Cause of Action;
- f. A judgment against Defendants for the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00) on the Sixth Cause of Action;
- g. A judgment against Defendants for the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00) on the Seventh Cause of Action;
- h. A judgment against the Defendants for the sum, including punitive damages, of Three Million Dollars (\$3,000,000.00) on the Eighth Cause of Action;
- i. Costs, disbursements, interests and attorneys' fees on all causes of action.

Dated: White Plains, New York
March 19, 2013

Thomas E. Gorman, Esq.
Attorney for Plaintiff

By: 

Thomas E. Gorman, Esq.
244 Westchester Ave.
Suite 410
White Plains, NY 10604
(914) 684-1155

To: THE CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
1 Centre Street, Room 1225
New York, NY 10007

POLICE OFFICER JESSICA FIGUEROA
46th Precinct
2120 Ryer Ave.
Bronx, New York 10457

POLICE OFFICER ANTHONY DONATO
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

OFFICERS JOHN DOE #1-6
46th Precinct
2120 Ryer Ave.
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOHN HILL,

ANSWER

Plaintiff(s),

-against-

Index #: 021851/2013E

THE CITY OF NEW YORK, POLICE OFFICER
JESSICA FIGUEROA, POLICE OFFICER ANTHONY
DONATO, AND POLICE OFFICER JOHN DOE #1-6,
(IDENTITIES PRESENTLY UNKNOWN),
INDIVIDUALLY AND IN THEIR OFFICIAL
CAPACITY,

Law Dept. #: 2013-030898

Defendant(s).

Defendant THE CITY OF NEW YORK, by MICHAEL A. CARDOZO,
Corporation Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 11, 13-15, 18, 22-26, 28-32,
34-37, 39-42, 44-46, 48-50, 52-54, 56-62, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to
the truth of the allegations set forth in paragraph(s) 1, 4-6, 12, 16, 17, 19-21, inclusive.
3. Deny the allegations set forth in paragraph(s) 7-10, inclusive, except that a
notice of a claim was presented, that more than thirty days have elapsed without adjustment
thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, inclusive, except that
the City of New York is a municipal corporation and maintains a Police Department pursuant to
law.

~~5. Deny each allegation set forth in paragraph(s) 27, 33, 38, 43, 47, 51, 55, inclusive, except as otherwise pleaded herein.~~

AFFIRMATIVE DEFENSE(S)

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

~~action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil~~

Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

-10. --If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States.

Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. The defendant(s) are not subject to the jurisdiction of this court, in that the summons does not bear the date it was filed with the clerk of the court.

12. The action on behalf of the plaintiff(s) is barred by reason of the fact that it was not commenced within the time provided by the Statute of Limitations.

13. Plaintiff(s)' complaint fails to comply with section 3017(c) of the CPLR.

~~WHEREFORE~~, defendant(s) demand judgment dismissing the complaint and all
~~cross-claims against them, or, in the event that they are adjudged liable, granting judgment over,~~
~~or apportioning such liability in accordance with their equitable shares of responsibility, and~~
awarding the costs of this action, together with such other and further relief as to the court may
seem just.

~~MICHAEL A. CARDOZO~~
Corporation Counsel
100 Church Street
New York, New York 10007

EXHIBIT "B"

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

JOHN HILL

N
INDEX #: 21851/2013E
DATE FILED:
Job #: 405466
Court Date: Time:

Plaintiff

THE CITY OF NEW YORK, POLICE OFFICER JESSICA FIGUEROA, ETC

THOMAS E GORMAN ESQ
244 WESTCHESTER AVENUE SUITE 4
WHITE PLAINS, NEW YORK 10604

Defendant

CLIENT'S FILE NO.:

AFFIDAVIT OF SERVICE UPON A CORPORATION

STATE OF NEW YORK: COUNTY OF NASSAU ss:

I, Robert Piaskowy, being duly sworn deposes and says deponent is not a party to this action and is over the age of eighteen years and resides in the state of New York.

That on 6/27/2013 at 3:00PM at OFF-OF CORP COUNCIL 100 CHURCH ST, NEW YORK, NY 10007, deponent served the within SUMMONS AND COMPLAINT WITH NOTICE REGARDING AVAILABILITY OF ELECTRONIC FILING

by personally delivering to and leaving with MADELYN SANTANA for CITY OF NEW YORK, a true copy thereof, and that deponent knew the person so served to be the DOCKETING CLERK/Managing Agent and stated (s)he was authorized to accept legal papers for the corporation.

The index # was endorsed on the papers served.

A description of the person served on behalf of the defendant is as follows:

Approx Age: 21 - 35 Yrs., **Approx Weight:** 100-130 Lbs., **Approx Height:** 5' 4" - 5' 8", **Sex:** Female,
Approx Skin: Brown, **Approx Hair:** Black

Sworn to before me on 6/28/2013
NOTARY PUBLIC STATE OF NEW YORK
JEFFREY WITTENBERG #41-4906457
Nassau County, Commission Expires 8/22/14



Robert Piaskowy
1298947

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

JOHN HILL

N
INDEX #: 21851/2013E
DATE FILED:
Job #: 405470
Court Date: Time:

Plaintiff

THE CITY OF NEW YORK, POLICE OFFICER JESSICA FIGUEROA, ETC

THOMAS E GORMAN ESQ
244 WESTCHESTER AVENUE SUITE 4
WHITE PLAINS, NEW YORK 10604

Defendant

CLIENT'S FILE NO.:

AFFIDAVIT OF SERVICE UPON A CORPORATION

STATE OF NEW YORK: COUNTY OF NASSAU ss:

I, Robert Piaskowy, being duly sworn deposes and says deponent is not a party to this action and is over the age of eighteen years and resides in the state of New York.

That on 6/27/2013 at 2:38PM at ONE POLICE PLAZA ROOM 140, NEW YORK, NY 10038; deponent served the within SUMMONS AND COMPLAINT WITH NOTICE REGARDING AVAILABILITY OF ELECTRONIC FILING

by personally delivering to and leaving with DAVID GOLDFARB for THE NEW YORK CITY POLICE DEPARTMENT, a true copy thereof, and that deponent knew the person so served to be the AGENCY ATTORNEY/Managing Agent and stated (s)he was authorized to accept legal papers for the corporation.

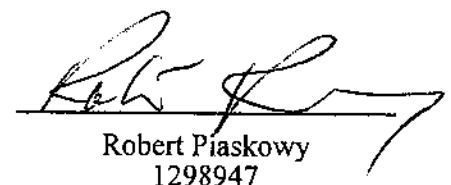
The index # was endorsed on the papers served.

A description of the person served on behalf of the defendant is as follows:

Approx Age: 36 - 50 Yrs., **Approx Weight:** 131-160 Lbs., **Approx Height:** 5' 4" - 5' 8", **Sex:** Male, **Approx Skin:** White, **Approx Hair:** Black

Sworn to before me on 6/28/2013
NOTARY PUBLIC STATE OF NEW YORK
JEFFREY WITTENBERG #41-4906457
Nassau County, Commission Expires 8/22/14




Robert Piaskowy
1298947

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

JOHN RILL

N
INDEX #: 21851/2013E
DATE FILED:
Job #: 405471
Court Date: Time:

VS

Plaintiff

THE CITY OF NEW YORK, POLICE OFFICER JESSICA FIGUEROA, ETC

THOMAS E GORMAN ESQ
244 WESTCHESTER AVENUE SUITE 4
WHITE PLAINS, NEW YORK 10604

Defendant

CLIENT'S FILE NO.:

AFFIDAVIT OF SUITABLE SERVICE

STATE OF NEW YORK: COUNTY OF NASSAU ss:

Patrick Laurenceau, being duly sworn deposes and says deponent is not a party to this action and is over the age of eighteen years and resides in the state of New York.

That on 7/1/2013 at 10:55AM at 2120 RYER AVENUE, BRONX, NY 10457 deponent served the within SUMMONS AND COMPLAINT WITH NOTICE REGARDING AVAILABILITY OF ELECTRONIC FILING on JESSICA FIGUEROA C/O 46TH PRECINCT therein named

After your deponent was unable with due diligence to serve the recipient by personal delivery, service was made by delivering a true copy thereof to and leaving with "JANE" COOLEY PRAA a person of suitable age and discretion at 2120 RYER AVENUE, BRONX, NY 10457 said premises being the recipient's usual place of business within the State of New York.

Deponent completed service by depositing a copy of the documents listed above on 7/2/2013 in a postpaid, properly addressed envelope by first class mail, bearing the legend Personal & Confidential and not indicating legal action, in an official depository under the exclusive care and custody of the United States Post Office in the State of New York.

Mailing was made to 2120 RYER AVENUE, BRONX, NY 10457

A description of the person served on behalf of the defendant is as follows:

Approx Age: 36 - 50 Yrs., **Approx Weight:** 131-160 Lbs., **Approx Height:** 5' 4" - 5' 8", **Sex:** Female, **Approx Skin:** Brown, **Approx Hair:** Brown

Other:

Deponent spoke to "JANE" COOLEY

Inquired as to the defendants place of business and received a positive reply and confirmed the above address of defendant and asked whether defendant was in active military service of the United States or the State of New York in any capacity, or is a dependant of anyone in the military and received a negative reply and that the defendant always wore civilian clothes and no military uniform. The source of my information and the grounds of my belief are the conversations and observations above narrated. Upon information and belief I aver that the defendant is not in the military service of New York State or of the United States as that the term is defined in either the State or in Federal statutes.

Sworn to before me on 7/2/2013

JEFFREY WITTENBERG #41-4906457

Nassau County, Commission Expires 8/22/14



Patrick Laurenceau
1272122

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

JOHN HILL

N
INDEX #: 21851/2013E
DATE FILED:
Job #: 405473
Court Date: Time:

vs

Plaintiff

THE CITY OF NEW YORK, POLICE OFFICER JESSICA FIGUEROA, ETC

THOMAS E GORMAN ESQ
244 WESTCHESTER AVENUE SUITE 4
WHITE PLAINS, NEW YORK 10604

Defendant

CLIENT'S FILE NO.:

AFFIDAVIT OF SUITABLE SERVICE

STATE OF NEW YORK: COUNTY OF NASSAU ss:

Patrick Laurenceau, being duly sworn deposes and says deponent is not a party to this action and is over the age of eighteen years and resides in the state of New York.

That on 7/1/2013 at 10:55AM at 2120 RYER AVENUE, BRONX, NY 10457 deponent served the within SUMMONS AND COMPLAINT WITH NOTICE REGARDING AVAILABILITY OF ELECTRONIC FILING on ANTHONY DONATO C/O 46TH PRECINCT therein named

After your deponent was unable with due diligence to serve the recipient by personal delivery, service was made by delivering a true copy thereof to and leaving with "JANE" COOLEY PRAA a person of suitable age and discretion at 2120 RYER AVENUE, BRONX, NY 10457 said premises being the recipient's usual place of business within the State of New York.

Deponent completed service by depositing a copy of the documents listed above on in a postpaid, properly addressed envelope by first class mail, bearing the legend Personal & Confidential and not indicating legal action, in an official depository under the exclusive care and custody of the United States Post Office in the State of New York.
Mailing was made to 2120 RYER AVENUE, BRONX, NY 10457

A description of the person served on behalf of the defendant is as follows:

Approx Age: 36 - 50 Yrs., **Approx Weight:** 131-160 Lbs., **Approx Height:** 5' 4" - 5' 8", **Sex:** Female, **Approx Skin:** Brown, **Approx Hair:** Brown

Other:

Deponent spoke to "JANE" COOLEY

Inquired as to the defendant's place of business and received a positive reply and confirmed the above address of defendant and asked whether defendant was in active military service of the United States or the State of New York in any capacity, or is a dependant of anyone in the military and received a negative reply and that the defendant always wore civilian clothes and no military uniform. The source of my information and the grounds of my belief are the conversations and observations above narrated. Upon information and belief I aver that the defendant is not in the military service of New York State or of the United States as that the term is defined in either the State or in Federal statutes.

Sworn to before me on 7/2/2013

JEFFREY WITTENBERG #41-4906457

Nassau County, Commission Expires 8/22/14



Patrick Laurenceau

Patrick Laurenceau
1272122



NYSCEF - Bronx County Supreme Court

Confirmation Notice

This is an automated response for Supreme Court / Court of Claims cases. The NYSCEF site has received your electronically filed document(s) for:

John Hill - v. - The City of New York et al

21851/2013E

Documents Received

Doc #	Document Type	Motion #	Date Received
2	AFFIRMATION/AFFIDAVIT OF SERVICE		07/12/2013 01:02 PM
3	AFFIRMATION/AFFIDAVIT OF SERVICE		07/12/2013 01:02 PM
4	AFFIRMATION/AFFIDAVIT OF SERVICE		07/12/2013 01:02 PM
5	AFFIRMATION/AFFIDAVIT OF SERVICE		07/12/2013 01:02 PM

Filing User

Name:	THOMAS EDWARD GORMAN		
Phone	9146841155	E-mail Address:	tgormanesh@yahoo.com
Fax #:		Work Address:	244 WESTCHESTER AVE STE 410 WHITE PLAINS, NY 10604

E-mail Notifications

An e-mail notification regarding this filing has been sent to the following address(es) on
07/12/2013 01:02 PM:

GORMAN, THOMAS EDWARD - tgormanesh@yahoo.com

NOTE: If submitting a working copy of this filing to the court, you must include as a notification page firmly affixed thereto a copy of this Confirmation Notice.

EXHIBIT "C"

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOHN HILL,

Plaintiff,

-against-

Index No.: 21851/13

AFFIDAVIT IN
SUPPORT

THE CITY OF NEW YORK, POLICE OFFICER
JESSICA FIGUEROA, POLICE OFFICER ANTHONY
DONATO, and POLICE OFFICERS JOHN DOE#1-6
(IDENTITIES PRESENTLY UNKNOWN), individually
and in their Official Capacity,

Defendants.
-----X

STATE OF NEW YORK }
 } SS.:
COUNTY OF BRONX }

JOHN HILL, being duly sworn, deposes and says:

1. I am the Plaintiff in the above-entitled action, and make this Affidavit in Support of the application for a Judgment by Default pursuant to CPLR 3215;
2. The above-entitled action was brought by me against the Defendants, including Defendant, POLICE OFFICER JESSICA FIGUEROA and POLICE OFFICER ANTHONY DONATO, to recover money damages for personal injuries sustained on 3-3-12 as a result of, among others, the assault and battery, false arrest, malicious prosecution, violation of civil rights and negligence of the Defendants;

3. On 3-3-12 I was involved in an incident wherein I was falsely accused by Police Officers of the City of New York, wrongfully taken into custody, beaten into unconsciousness, improperly arrested, processed through the system, imprisoned and confined and caused to sustain severe and permanent personal injury and in violation of my civil rights due to the outrageous conduct and negligence/gross negligence of the Defendants herein;
4. My attorney advised me that the above-entitled action was commenced by the e-filing of the Summons and Complaint in the County Clerk's office on 6-18-13 (Please see Exhibit "A");
5. I am further advised that the aforesaid Summons and Complaint was served upon Defendants, POLICE OFFICER JESSICA FIGUEROA and POLICE OFFICE ANTHONY DONATO, on 7-1-13, as per the attached Affidavits of Service. The Affidavit of Service were e-filed with the Bronx County Clerk on 7-12-13 (Please see Exhibit "B");
6. The time for Defendants, POLICE OFFICER JESSICA FIGUEROA and POLICE ANTHONY DONATO, to Answer or move with respect to the Complaint has expired, and the said Defendants have not Answered or moved with respect to the Complaint, nor have they requested an extension of time to plead and none has been granted;
7. The Defendants' time to plead has not been extended, and the Defendants are now in default in pleading;

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOHN HILL,

Plaintiff,

Index No.: 21851/13

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JESSICA FIGUEROA, POLICE OFFICER ANTHONY
DONATO, and POLICE OFFICERS JOHN DOE#1-6
(IDENTITIES PRESENTLY UNKNOWN), individually
and in their Official Capacity,

Defendants,
-----X

MOTION FOR DEFAULT JUDGMENT

LAW OFFICE
THOMAS E. GORMAN, ESQ.
ATTORNEY AT LAW
244 WESTCHESTER AVE., SUITE 410
WHITE PLAINS, NY 10604-2919
(914) 684-1155

To:	Michael A. Cardozo Corporation Counsel Attorney for Defendant THE CITY OF NEW YORK. 100 Church St., 3 rd Floor New York, NY 10007 (212) 356-3576 File No.: 2013-030898	P O JESSICA FIGUEROA Attorney Pro Se 46 TH Precinct 2120 Ryer Ave. Bronx, NY 10457	P O ANTHONY DONATO Attorney Pro Se 46th Precinct 2120 Ryer Ave. Bronx, NY 10457
-----	--	---	---

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

Sir: Please take notice

NOTICE OF ENTRY

That the within is a (certified) true copy of a
Duly entered in the office of the clerk of the within named court on

2013

NOTICE OF SETTLEMENT

That an order
for settlement to the HON.

of which the within is a true copy will be presented
One of the judges

On

2013, at M.

Dated,

Yours, etc.

Law Office
Thomas E. Gorman, Esq.
244 Westchester Ave., Suite 410
White Plains, NY 10604-2919
(914) 684-1155

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOHN HILL,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JESSICA FIGUEROA, POLICE OFFICER ANTHONY
DONATO and POLICE OFFICERS JOHN DOE#1-6,
(IDENTITIES PRESENTLY UNKNOWN), individually
and in their Official Capacity,

Defendants.
-----X

Index No.: 21851/13

AFFIRMATION IN
FURTHER SUPPORT
and in
OPPOSITION TO
MOTION SEEKING A
STAY

THOMAS E. GORMAN, ESQ., an attorney duly admitted to practice before the
Courts of the State of New York, hereby affirms the following to be true pursuant to the
penalty of perjury:

1. I am a member of the law firm of Thomas E. Gorman, Esq., attorneys for
Plaintiff, JOHN HILL and, as such, am familiar with the facts and
circumstances of this matter based upon a review of the file maintained in
my office;
2. This affirmation is submitted in further support of the Cross-Motion
seeking a Default Judgment pursuant to CPLR 3215 against the non-
appearing/non-answering Defendants, POLICE OFFICER JESSICA
FIGUEROA and POLICE OFFICER ANTHONY DONATO and in
Opposition to Defendant's Motion seeking a Stay pursuant to CPLR 2201;
3. The Court should issue an Order granting Judgment by Default as against
these Defendants as they have not opposed the request for relief;

incrimination" (citing DeSiervi v. Liverzani, 136 A.D. 2d 527, 528). It is respectfully asserted that resolution of the criminal proceeding would not serve as a complete disposition of the civil matter, as causes of action would still continue including, but not limited to, negligence, negligent hiring and supervision, use of excessive force, assault, battery, violation of Civil Rights. As such, the Civil action and the Criminal action are not so intertwined that the request for a Stay should be denied.

7. Finally, if the Court decides that a Stay is warranted, then it should do so only with respect to the action as against Defendant, "The City," and not as to the Defendants who have not Answered and who are in default. To do otherwise would be to reward these Defendants for ignoring their obligations and who have not opposed or joined in any request for relief in this matter made at this time.

WHEREFORE, it is respectfully requested that the instant request for relief be granted in its entirety along with such other and further relief as this Court may deem just and proper.

Dated: White Plains, New York
October 9, 2013


Thomas E. Gorman

AFFIDAVIT OF SERVICE BY MAIL

STATE OF NEW YORK }
 } ss.:
COUNTY OF WESTCHESTER }

Thomas E. GORMAN, being duly sworn, deposes and says:

I am over 18 years of age, I am not a party to the action, and I reside in Westchester County in the State of New York.

On 10-10-13, I served a true copy of the annexed Affirmation in Further Support and in Opposition to Motion Seeking a Stay, by mailing the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Michael A. Cardozo
Corporation Counsel
Attorney for Defendant
THE CITY OF NEW YORK
100 Church St., 3rd Floor
New York, NY 10007
(212) 356-3576
File No.: 2013-030898

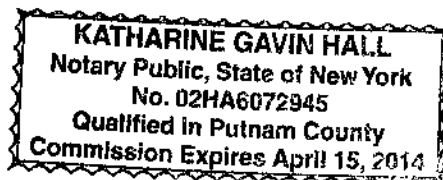
POLICE OFFICER JESSICA FIGUEROA
Attorney Pro Se
46TH Precinct
2120 Ryer Ave.
Bronx, NY 10457

POLICE OFFICER ANTHONY DONATO
Attorney Pro Se
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457



Sworn to before me this
10 day of October, 2013



Notary Public

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOHN HILL,

Plaintiff,

Index No.: 21851/13

-against-

THE CITY OF NEW YORK, POLIE OFFICER
JESSICA FIGUEROA, POLICE OFFICER ANTHONY
DONATO, and POLICE OFFICERS JOHN DOE#1-6
(IDENTITIES PRESENTLY UNKNOWN), individually
and in their Official Capacity,

Defendants,
-----X

AFFIRMATION IN FURTHER SUPPORT and in
OPPOSITION TO MOTION SEEKING A STAY

LAW OFFICE
THOMAS E. GORMAN, ESQ.
ATTORNEY AT LAW
244 WESTCHESTER AVE., SUITE 410
WHITE PLAINS, NY 10604-2919
(914) 684-1155

To:	Michael A. Cardozo Corporation Counsel Attorney for Defendant THE CITY OF NEW YORK. 100 Church St., 3 rd Floor New York, NY 10007 File No.: 2013-030898	P O JESSICA FIGUEROA Attorney Pro Se 46 TH Precinct 2120 Ryer Ave. Bronx, NY 10457	P O ANTHONY DONATO Attorney Pro Se 46th Precinct 2120 Ryer Ave. Bronx, NY 10457
-----	--	---	---

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

Sir: Please take notice

NOTICE OF ENTRY

That the within is a (certified) true copy of a

Duly entered in the office of the clerk of the within named court on

2013

NOTICE OF SETTLEMENT

That an order

of which the within is a true copy will be presented

for settlement to the HON.

One of the judges

On

2013, at M.

Dated,

Yours, etc.

Law Office
Thomas E. Gorman, Esq.
244 Westchester Ave., Suite 410
White Plains, NY 10604-2919
(914) 684-1155

New York State Unified Court System

WebCrim

Case Details - Summary

CASE INFORMATION

Court: **Bronx Criminal Court**
Case #: **2012BX013725**
Defendant: **Hill, Johnny**

Defendant

Name: **Hill, Johnny**
Birth Year: **1971**
NYSID: **7886964N**

Incident and Arrest

Incident

Date: **March 3, 2012**
CJTN: **65328095Z**

Arrest

Date & Time: **March 3, 2012 21:10**
Arrest #: **B12618642**

Officer

No Officer Information on File

Attorney Information

Defense Attorney

Name:
Type: **Legal Aid**
Court Date: **April 24, 2012**
Court Part: **M3**
Address: **1020 Grand Concourse, Bronx, NY 10451**
Phone: **718-579-3000**

Assistant District Attorney

Name:
Assigned: **March 5, 2012**

Next Appearance

Date: **November 14, 2013**
Court: **Bronx Criminal Court**
Part: **MSG**

Docket Sentence

No Sentence Information on File

Index No. 21851/13

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOHN HILL,

Plaintiff,

- against -

THE CITY OF NEW YORK, POLICE OFFICER
JESSICA FIGUEROA, POLICE OFFICER ANTHONY
DONATO, and POLICE OFFICERS JOHN DOE #1-6
(IDENTITIES PRESENTLY UNKNOWN), individually
and in their Official Capacity,

Defendants.

AFFIRMATION IN OPPOSITION AND IN REPLY

MICHAEL A. CARDOZO

*Corporation Counsel of the City of New York
Attorney for Defendant City of New York
100 Church Street, 3rd Floor
New York, New York 10007*

*Of Counsel: Christine Limbach
Tel: (212) 356-3576*

Due and timely service is hereby admitted.

....., N.Y., 2013..

..... Esq.

Attorney for

2013 SEP 26 AM 10:06
BRONX SUPREME COURT
FILED DIVISION